

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 34
JUDICIAL OFFICER: LEONARD E MARQUEZ
HEARING DATE: 08/17/2026

INSTRUCTIONS FOR CONTESTING TENTATIVE RULING IN
DEPARTMENT 34

The tentative ruling will become the ruling of the Court unless by 4:00PM of the Court day preceding the hearing, notice is given of an intent to argue the matter. Counsel or self-represented parties must email Department 34 (Dept34@contracosta.courts.ca.gov) to request argument and must specify, in detail, what provision(s) of the tentative ruling they intend to argue and why. Counsel or self-represented parties requesting argument must advise all other counsel and self-represented parties by no later than 4:00PM of their decision to argue, and of the issues to be argued. Failure to timely advise the Court and counsel or self-represented parties will preclude any party from arguing the matter. (Pursuant to Local Rule 3.43(2).)

ALL APPEARANCES TO ARGUE WILL BE IN PERSON OR BY ZOOM, PROVIDED THAT PROPER
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Meeting ID: 161 108 5023
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Law & Motion

1. 9:00 AM CASE NUMBER: C23-02697
CASE NAME: IDO ADLER VS. ANDERSON RANCH SINGLE FAMILY OWNERS ASSOCIATION
HEARING ON SUMMARY MOTION
FILED BY: ADLER, IDO
TENTATIVE RULING:

Before the Court is a motion for summary adjudication filed by plaintiffs against defendant, Anderson Ranch Single Family Owners Association ("Anderson Ranch"). The motion targets the first, second, fifth, and sixth causes of action alleged in the Second Amended Complaint. The motion is **denied**.

This motion is the second motion for summary adjudication filed by plaintiffs. Plaintiffs filed their first motion for summary adjudication in June of 2025 wherein they sought adjudication as to their First Amended Complaint ("FAC") on issues including quiet title to an easement by necessity and declaratory relief and injunctive relief with respect to use of the Easement Area (which was undefined in the FAC). Plaintiffs also moved for adjudication on several of defendant's affirmative defenses

(twelfth, thirteenth, fourteenth, and fifteenth), three of which related to the effect of the defendant's CC&Rs on plaintiff's property and their easement claim.

Defendant opposed the motion in the basis that the scope of any easement (by necessity or otherwise) is limited to that required for open space access and is not the broad easement that would permit the residential development that plaintiffs seek to pursue. The motion was heard on October 6, 2025 by Judge Devine, the judge assigned to the case at that time, and an Order denying the motion was filed on November 13, 2025, wherein the Court adopted its written tentative ruling after taking the matter under submission.

Plaintiffs moved for leave to amend their complaint, which the Court granted. On February 2, 2026, plaintiffs filed the Second Amended Complaint ("SAC"). The SAC includes six causes of action with the following titles: (1) Quiet Title – Easement by Necessity; (2) Declaratory Relief and Injunctive Relief; (3) Quiet Title – CCP § 771.010-771.020; (4) Declaratory Relief and Injunctive Relief; (5) Quiet Title, (6) Declaratory Relief. Very little is changed with respect to the facts asserted. Plaintiffs added two paragraphs which state:

24. The proposed Easement Area is a 55-foot-wide continuation of Hill Meadow Drive, which will accommodate mandatory fire access, ADA sidewalks, utility corridors, and other development constraints imposed by regulatory agencies. A true copy of the proposed location and legal description of the Easement Area is attached as Exhibit B.

25. The width of this road is necessary for the proposed 38-unit residential development wherein at least 20% of the units are low-to-moderate income units, which is necessary to qualify for the Builder's Remedy to this development. The total as-built value of the proposed development is \$100,000,000.00.

The "new" fifth cause of action seeks "a judgment that the Hill Meadow Property is free and clear of any covenant, restriction, lien, or encumbrance asserted by Anderson Ranch, Unknown Defendants, and Does 1 through 20 [...]" (SAC, ¶170.)

The "new" sixth cause of action seeks a declaration from the Court that "Hill Meadow Property is not part of the Common Area as defined in the CC&Rs and is not subject to the CC&Rs." (SAC, ¶172.)

After filing the SAC, plaintiffs filed this second motion for summary adjudication on March 25, 2026. Plaintiffs contend they have "newly discovered facts and circumstances" sufficient to "entirely dispose of the first and second causes of action" and allow them to proceed pursuant to Code of Civil Procedure, § 437c (f)(2), which states:

A party shall not move for summary judgment based on issues asserted in a prior motion for summary adjudication and denied by the court unless that party establishes, to the satisfaction of the court, newly discovered facts or circumstances or a change of law supporting the issues reasserted in the summary judgment motion.

Plaintiffs' allegedly newly discovered facts or circumstances consist of (1) a legal description for a 55-foot easement to Parcel B by a licensed land surveyor, and (2) deposition testimony from Danville's Chief of Planning purportedly confirming that a 55-foot roadway is consistent with the public road standard in Danville, and that Danville did not have any objection to the proposed location for the roadway.

Defendants again oppose this motion, in part on the basis that the survey and testimony are not sufficient to permit a second motion for summary adjudication.

While the fifth and sixth causes of action are new to the SAC and therefore could not have been part of the prior motion for summary adjudication, these causes of action add nothing in terms of substance and instead overlap with previously alleged facts and theories. "The declaratory relief statute should not be used for the purpose of anticipating and determining an issue which can be determined in the main action. The object of the statute is to afford a new form of relief where needed and not to furnish a litigant with a second cause of action for the determination of identical issues." (*Hood v. Superior Court* (1995) 33 Cal.App.4th 319, 324 [writ of mandate requiring trial court to deny motion for summary adjudication because party may not select issues, other than duty and punitive damages, implicated in one or more causes of action, amend that pleading to add a cause of action for declaratory relief as to those issues, and then obtain a summary adjudication of the declaratory relief cause of action].)

In any event, as pointed out in the opposition, the scope of the easement is not undisputed. The easement width would not necessarily be 55 feet, as plaintiffs have pleaded. It could be 28', 34', or 40' depending on the size of the development. (Memorandum of Points and Authorities in Support of Opposition, 11:7-21.)

The Court declines to reconsider the prior order issued by Judge Devine. The new motion involves the same legal issues.

The Court declines to rule on the objections because they are not material to the disposition of this motion. (Code Civ. Proc., § 437c (q).)

2. 9:00 AM CASE NUMBER: C24-02209
CASE NAME: PATRICK MORRISSEY VS. ALBERT SEBILIA
HEARING ON SUMMARY MOTION BY CHRISTOPHER ROBERTS AND COURTLY STEVENS
FILED BY:

TENTATIVE RULING:

Before the Court is Defendant Courtly Stevens Roberts and Defendant Christopher Allen Roberts (collectively, "Defendants")'s motion for summary judgment or in the alternative summary adjudication. The Motion relates to Plaintiff Patrick Morrissey and Plaintiff Alexandra Morrissey (collectively, "Plaintiffs")'s Second Amended Complaint for (1) private nuisance, (2) damages for public nuisance, (3) injunctive relief for abatement of nuisance, (4) damages for trespass, (5) diversion of surface waters, (6) diversion of surface water to groundwater, (7) negligence, and (8) declaratory relief.

As a threshold issue, the Court notes that there are procedural defects in both the Notice of Motion and Separate Statement. A separate statement seeking summary adjudication must state verbatim the noticed issues from the notice of motion at the beginning of each issue for summary adjudication. (See Calif. Rules Court, rule 3.1350, subd. (b); *Truong v. Glasser* (2010) 181 Cal.App.4th 102, 118.) Defendants' separate statement fails to comply with this requirement.

Here, Defendants' notice reads as follows:

1. Plaintiffs' First, Third and Fourth Causes of Action are barred because the SAC fails to plead

sufficient material facts to support such causes of action.

2. Plaintiffs' First, Third and Fourth Causes of Action against are barred by the applicable statute of limitations.
3. Plaintiffs' Second Cause of Action for Public Nuisance is barred because Plaintiffs failed to plead sufficient material facts to support such causes of action and fail to plead any public nuisance or public right
4. Plaintiffs' Fifth, Sixth and Seventh Causes of Action are barred because the SAC fails to plead sufficient material facts to support such causes of action.

However, Defendants' Separate Statement is organized by the following issues:

1. Plaintiffs['] damage resulted from upgradient drainage flowing into a swale filled with porous material located on their property.
2. Plaintiffs' Property is located on a steep hillside in an area subject to landslides
3. Plaintiffs and their predecessors failed to take adequate measures to protect their property from damage associated with drainage into the swale and porous fill material located beneath their hillside property.
4. Defendants' property does not overlie the swale and fill material at issue in the SAC
5. Drainage from Defendants' property is de minimis in relation to the watershed at issue and drains away from Plaintiffs' Property
6. Defendants have not altered the direction, amount, or velocity of drainage from their property and drainage has not been altered in over 40 years.
7. Total runoff into the swale and fill material on Plaintiffs' Property comes from all properties within the watershed and not just from adjacent properties of Defendants.

Following these issues, the Defendants include "undisputed material facts" that consist of citations to the SAC and its allegations.

The court's power to deny summary judgment on the basis of failure to comply with California Rules of Court, rule 3.1350 is discretionary, not mandatory. (See *Cadlo v. Owens-Illinois, Inc.* (2004) 125 Cal.App.4th 513, 523; cf. *San Diego Watercrafts, Inc. v. Wells Fargo Bank* (2002) 102 Cal.App.4th 308, 315–316.) In lieu of denying the motion based upon a defective notice and separate statement, the Court elects to treat the motion as one for summary judgment only.

The Court also notes that the law does not allow a "reply" Separate Statement by the moving party. (*Nazir v. United Airlines Inc.* (2009) 178 Cal.App.4th 243, 252 [there is no provision in the statute for a reply separate statement.]; Code Civ. Proc. §437c.) The Court declines to consider Defendants' "Reply to Plaintiffs' Response to Defendants' Separate Statement of Undisputed Material Facts."

Similarly, the Court declines to consider the Supplemental Declaration of Matthew Emrick in Support of Defendants' Reply. (See *San Diego Watercrafts, supra*, 102 Cal.App.4th at p. 313 [additional evidence submitted with Reply cannot be considered unless opposing party has notice and an opportunity to respond].)

For the following reasons, the motion is **DENIED**.

Judicial Notice

“Judicial notice is the recognition and acceptance by the court, for use by the trier of fact or by the court, of the existence of a matter of law or fact that is relevant to an issue in the action without requiring formal proof of the matter.” (*Lockley v. Law Office of Cantrell, Green, Pekich, Cruz & McCort* (2001) 91 Cal.App.4th 875, 882.) “Judicial notice may not be taken of any matter unless authorized or required by law.” (Evid. Code § 450.) Matters that are subject to judicial notice are listed in Evidence Code sections 451 and 452. (See Evid. Code, §§ 451, 452.) “The fundamental theory of judicial notice is that the matter that is judicially noticed is one of law or fact that cannot reasonably be disputed.” (*Post v. Prati* (1979) 90 Cal.App.3d 626, 633.) The burden is on the party seeking judicial notice to provide sufficient information to allow the court to take judicial notice. (*Willis v. State of California* (1994) 22 Cal.App.4th 287, 291.)

The Court rules on Defendants’ requests for judicial notice as follows:

A. Drone Photographs of 14 Cedar Lane and adjacent properties

Defendants have not demonstrated that these photographs are a proper subject for judicial notice. (Evid. Code § 452(c), (h).) Moreover, they have not been properly authenticated by the declaration of a qualified witness or otherwise. (See Evid. Code, § 453, subd. (b) [party seeking judicial notice must furnish the court with sufficient information]; see also *In re Marriage of Pendleton & Fireman* (2000) 24 Cal.4th 39, 47, fn. 6 [denying judicial notice of letters where, among other things, requesting party did not furnish certified copies].) The Declaration of Courtney Stevens Roberts is inadequate to authenticate these photographs. The request for Judicial Notice of Exhibit A is **DENIED**.

B. March 1960, Contra Costa County Tentative Subdivision Map – Tract 2771

While the Court **GRANTS** judicial notice of Exhibit B, it declines to accept its contents as true, or make factual inferences therefrom. (*Yvanova v. New Century Mortgage Corp.* (2016) 62 Cal.4th 919, 924, fn. 1 [judicial notice taken of existence and contents of documents but not disputed or disputable facts stated].)

C. Excerpts of a February 8, 1962 geotechnical report regarding Tract 2771

This report has not been properly authenticated by the declaration of a qualified witness or otherwise. (See Evid. Code, § 453, subd. (b); see also *In re Marriage of Pendleton & Fireman*, *supra*, 24 Cal.4th at 47, fn. 6.) The request for Judicial Notice of Exhibit C is **DENIED**.

D. 1975, Nilsen, T.H., USGS Preliminary Photointerpretation Map of Landslide and Other Surface Deposits of the Oakland East 7-1/2 Minute Quadrangle, Contra Costa and Alameda Counties, California, United States Geological Survey (USGS) Open File Map 75-277-Plate 41, Scale 1:24,000

While the Court **GRANTS** judicial notice of Exhibit D, it declines to accept its contents as true, or make factual inferences therefrom. (*Yvanova v. New Century Mortgage Corp.* (2016) 62 Cal.4th 919, 924, fn. 1 [judicial notice taken of existence and contents of documents but not disputed or disputable facts stated].)

E. 1969-1973 Contra Costa County Building Inspection Reports for proposed pool on 10 Cedar Lane

This document has not been properly authenticated by the declaration of a qualified witness or otherwise. (See Evid. Code, § 453, subd. (b); see also *In re Marriage of Pendleton & Fireman*, *supra*, 24

Cal.4th at 47, fn. 6.) The request for Judicial Notice of Exhibit E is **DENIED**.

F. 1982, Contra Costa County Assessors Map, Map of Trac 2771

While the Court **GRANTS** judicial notice of Exhibit F, it declines to accept its contents as true, or make factual inferences therefrom. (*Yvanova v. New Century Mortgage Corp.* (2016) 62 Cal.4th 919, 924, fn. 1 [judicial notice taken of existence and contents of documents but not disputed or disputable facts stated].)

G. 1991, The City of Orinda 1991 Photo interpretive Landslide Features Map

This document has not been properly authenticated by the declaration of a qualified witness or otherwise. (See Evid. Code, § 453, subd. (b); see also *In re Marriage of Pendleton & Fireman*, *supra*, 24 Cal.4th at 47, fn. 6.) The request for Judicial Notice of Exhibit G is **DENIED**.

H. September 2023, Rogers, J. D., Urban Landslide Hazard Mapping: A Case Study in Orinda, California., AEG Special Publication No. 31. Association of Environmental & Engineering Geologists. (Excerpts)

This document has not been properly authenticated by the declaration of a qualified witness or otherwise. (See Evid. Code, § 453, subd. (b); see also *In re Marriage of Pendleton & Fireman*, *supra*, 24 Cal.4th at 47, fn. 6.) The request for Judicial Notice of Exhibit G is **DENIED**.

I. January 2023 Field Reports from East Bay Municipal Utilities District

This document has not been properly authenticated by the declaration of a qualified witness or otherwise. (See Evid. Code, § 453, subd. (b); see also *In re Marriage of Pendleton & Fireman*, *supra*, 24 Cal.4th at 47, fn. 6.) The request for Judicial Notice of Exhibit G is **DENIED**.

Legal Standard on Summary Judgment

A motion for summary judgment is properly granted only when “all the papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to a judgment as a matter of law.” (Code Civ. Proc. § 437c, subd. (c).) A defendant may bring a motion on the ground the plaintiff cannot prove one of the required elements of the case or there is a complete defense to the action. (Code Civ. Proc. § 437c, subds. (o)(1), (2) & (p)(2); *Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 849.)

To carry its initial burden when the motion is directed to the plaintiff’s case rather than an affirmative defense, the defendant must present evidence that either negates an element of the plaintiff’s cause of action or shows that the plaintiff does not possess, and cannot reasonably obtain, evidence necessary to establish at least one element of the cause of action. (*Aguilar*, *supra*, 25 Cal.4th at pp. 853-854.) Only after the defendant carries that initial burden does the burden shift to the plaintiff “to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto.” (Code Civ. Proc. § 437c, subd. (p)(2).)

Courts “liberally construe the evidence in support of the party opposing summary judgment and resolve doubts concerning the evidence in favor of that party.” (*Dore v. Arnold Worldwide, Inc.* (2006) 39 Cal.4th 384, 389.)

Analysis

This case arises out of a landslide that occurred on and near the homes owned by Plaintiffs and Defendants on or about January 15 through 19, 2023. (SAC at ¶ 15.) As a result of the landslide,

Plaintiffs' home and other improvements were destroyed and their lot severely damaged. (*Id.* at ¶ 16.)

Defendants argue that "Plaintiffs' primary theory of liability for each cause of action as to the Roberts relates to allegations of non-existent drainage from the Roberts' Property." (MSJ at 10:5-6.) They further argue that "the evidence demonstrates that Plaintiffs failed to take reasonable measures to protect their property from drainage runoff especially given their home was constructed over a known swale. On the other hand, the evidence demonstrates that Defendants not only acted reasonably but that their property was not a source of runoff onto Plaintiffs' Property." (*Id.* at 10:16-20.)

With respect to the flow of surface water from an upper landowner, California has adopted a modified version of the civil law rule dubbed the "reasonableness test." (*Keys v. Romley* (1966) 64 Cal.2d 396, 405-406; *Contra Costa County v. Pinole Point Properties, LLC* (2015) 235 Cal.App.4th 914, 929-930.) An upper property owner may be liable if they fail to exercise reasonable care in the use of their property so as to avoid injury to the adjacent property through the flow of surface waters. "The test is whether, under all the circumstances, the upper landowner's conduct was reasonable. This rule of reasonableness applies to both private and public landowners, but it requires reasonable conduct on the part of downstream owners as well. This test requires consideration of the purpose for which the improvements were undertaken, the amount of surface water runoff added to the streamflow by the defendant's improvements in relation to that from development of other parts of the watershed, and the cost of mitigating measures available to both upper and downstream owners. Those costs must be balanced against the magnitude of the potential for downstream damage. If both plaintiff and defendant have acted reasonably, the natural watercourse rule imposes the burden of stream-caused damage on the downstream property." (*Locklin v. City of Lafayette* (1994) 7 Cal.4th 327, 337.) Reasonableness is a factual question "to be determined in each case upon a consideration of all the relevant circumstances, including such factors as the amount of harm caused, the foreseeability of the harm which results, the purpose or motive with which the possessor acted, and all other relevant matter." (*Keys, supra*, 64 Cal.2d at 410.)

In *Sprecher v. Adamson Companies* (1981) 30 Cal.3d 358 (*Sprecher*), the Supreme Court dispensed with the common law rule immunizing landowners from liability for harm caused by natural conditions of their land to persons outside the premises in favor of a rule applying traditional principles of negligence. Ruling that summary judgment had been improperly granted in a case much like this one, where heavy rains triggered a landslide that damaged the plaintiff's land, the *Sprecher* Court rejected the common law distinction between natural and artificial conditions of land. As the *Sprecher* Court explained, "Whatever the rule may once have been, it is now clear that a duty to exercise due care can arise out of possession alone." (*Id.* at p. 367.) "It must [] be emphasized that the liability imposed is for negligence. The question is whether in the management of his property, the possessor of land has acted as a reasonable person under all the circumstances. The likelihood of injury to plaintiff, the probable seriousness of such injury, the burden of reducing or avoiding the risk, the location of the land, and the possessor's degree of control over the risk-creating condition are among the factors to be considered by the trier of fact in evaluating the reasonableness of a defendant's conduct." (*Id.* at p. 372.)

Defendants' motion essentially inverts this test by arguing as a threshold matter that "**Plaintiffs** failed to take reasonable measures to protect their property from drainage runoff[.]" (MSJ at 10:17 [emphasis added].) However, on summary judgment it is Defendants' initial burden to present sufficient evidence to preclude the trier of fact from finding they had acted unreasonably or else establish the Plaintiffs do not possess and cannot reasonably obtain evidence to prove they acted negligently. (*Aguilar, supra*, 25 Cal.4th at pp. 853-854.) The Defendants do not meet their burden on

summary judgment simply by pointing out the “‘absence of evidence to support’ an element of the plaintiff’s cause of action [citation]” (*Id.* at p. 855, fn. 23; see *Kahn v. East Side Union High School Dist.* (2003) 31 Cal.4th 990, 1002-1003.) Absent such proof, the burden on summary judgment does not shift to the Plaintiffs to demonstrate a triable issue of material fact on the question of breach.

The concept of reasonableness is an inherently factual inquiry. (See, e.g., *Sprecher, supra*, 30 Cal.4th at p. 373 [reversing summary judgment where “evidence does not conclusively establish that no rational inference of negligence can be drawn under the circumstances of this case”]; *Jackson v. Ryder Truck Rental, Inc.* (1993) 16 Cal.App.4th 1830, 1838 [breach of duty generally presents a factual question preventing summary judgment].) As *Sprecher* directs, the question of reasonableness in this case requires examination of myriad factors, including, at a minimum, “[t]he likelihood of injury to plaintiff, the probable seriousness of such injury, the burden of reducing or avoiding the risk, the location of the land, and the possessor’s degree of control over the risk-creating condition.” (*Sprecher*, at p. 372.)

The damage to the Plaintiffs’ home, like the damage in *Sprecher*, resulted from a landslide caused by heavy rains, not just flooding resulting from the natural draining of surface waters. (Cf. *Julian v. Hartford Underwriters Ins. Co.* (2005) 35 Cal.4th 747, 759 [rain and landslide are two distinct perils].) The issue of Defendants’ liability thus relates not to their inaction with regard to the natural flow of surface water but to their failure to ensure the stability of the slope on their property. (See *Sprecher, supra*, 30 Cal.3d at p. 373 [trier of fact entitled to consider availability of effective measures for control of slide].)

Under *Keys*, Defendants have a duty to exercise due care in the management of their property. The propriety of summary judgment then turns on the issue of reasonableness (breach of duty). Defendants have not presented any evidence on the issue of their own reasonable management of their property. Instead, their argument is based on their contention that “their property was not a source of runoff onto Plaintiffs’ Property.” (MSJ at 10:19-20.) This contention is not supported by admissible evidence (see Evidentiary Objections, below). Even if the testimonial evidence of Courtly Stevens Roberts that she and her husband “have not made any changes to drainage, nor to any landscaping, or created any new impervious surfaces” (Courtly Stevens Roberts Decl. at ¶ 6) is considered, it does not “conclusively negate” the element of reasonableness, an “often impossibly high” standard of proof. (See, e.g., *Guz v. Bechtel National, Inc.* (2000) 24 Cal.4th 317, 373 (conc. opn. of Chin, J.)

Under the stringent standard for determining a motion for summary judgment set forth in *Aguilar*, Defendants have failed to present sufficient evidence to shift the burden to the Plaintiffs.

Finally, Defendants’ concluding argument that Plaintiffs’ entire action is barred for failure to join necessary and indispensable parties lacks merit. Defendants cite no authority, and the Court is not aware of any, that an alleged failure to join an indispensable party warrants grant of summary judgment in favor of a defendant. Defendants’ reliance on *Thomson v. Talbert Drainage District* (1959) 168 Cal.App.2d 687 is inapt. Defendants have not demonstrated that the relief Plaintiffs seek would injure or affect the interests of a third person not yet joined. The object of Plaintiffs’ Second Amended Complaint is monetary damages and injunctive relief related to stabilization of the area damaged by the landslide. Defendants argue that Plaintiffs cannot achieve this injunctive relief with only the present parties as this action does not include all lots within the watershed. They further argue that the City of Orinda, who owns and maintains the street, and EBMUD, who maintains pipelines and trenches in the road prism of Cedar Lane are indispensable parties. However, the SAC is not directed towards the entire watershed and it is unclear that the participation of every property owner within

the watershed is necessary to effect Plaintiffs' requested relief. The Court declines to grant the motion on this ground.

For the foregoing reasons, the motion is **DENIED**.

Evidentiary Objections

The Court rules only on those objections material to the Court's ruling on the motion for summary judgment. (Code Civ. Proc. § 437c(q).)

Plaintiffs' Objections to Evidence:

Objection No. 1: Sustained.

3. 9:00 AM CASE NUMBER: C24-02590
CASE NAME: NEXTGEAR CAPITAL, INC. VS. FARHAD AMINZADA
HEARING ON SUMMARY MOTION
FILED BY: NEXTGEAR CAPITAL, INC.
TENTATIVE RULING:

Before the Court is Defendant NextGear Capital, Inc., a Delaware Corporation ("NextGear" or "Defendant")'s Motion for Summary Judgment or in the alternative Summary Adjudication. The Motion relates to Plaintiff Area Target Used Cars, LLC ("Plaintiff" or "Area Target")'s First Amended Complaint for (1) Breach of Written Purchase Contracts; (2) Breach of Fiduciary Duty; (3) Claim and Delivery / Replevin; (4) Declaratory Relief; and (5) Injunctive Relief. Only the third, fourth, and fifth causes of action are alleged against Defendant. Plaintiff has not opposed the Motion.

For the following reasons, Defendant's unopposed motion for summary judgment is **GRANTED**.

Standard

The party moving for summary judgment has the burden of persuasion to show there is no triable issue of material fact and thus it is entitled to judgment as a matter of law. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850.)

Only if the moving party successfully meets this burden does the burden shift to the opposing party to make its own prima facie showing of the existence of a triable issue of material fact. (*Ibid.*; see also *Chern v. Bank of America* (1976) 15 Cal.3d 866, 873.) Even though the instant motion is unopposed, the Court cannot grant summary judgment unless Defendant meets the initial burden. (See *Johnson v. Superior Court* (2006) 143 Cal.App.4th 297, 305 [trial court order granting summary judgment reversed despite lack of timely-filed declaration that was proper under CCP § 2015.5 because unless defendant meets his initial burden, summary judgment cannot be granted "even if the opposing party does not respond sufficiently or at all."].) The scope of the initial burden is defined by the pleadings. (See *580 Folsom Assocs. v. Prometheus Dev. Co.* (1990) 223 Cal. App. 3d 1, 18.)

Brief Factual and Procedural Background

Next Gear as Plaintiff in C24-02590 filed its initial complaint on September 30, 2024 followed by an amended complaint on October 3, 2024. The First Amended Complaint in C24-02590 alleges causes of action against Defendant US City Auto, Inc. dba Bay Motors and Defendant Farhad Aminzada for (1) Breach of Demand Promissory Note and Security Agreement, (2) Breach of Individual Guaranty

Agreement, (3) Claim and Delivery as Against All Defendants, (4) Conversion as Against All Defendants, and (5) Common Count as Against All Defendants. The claims arise out of a commercial line of credit ("flooring line") to Defendant automobile dealership. (See, e.g., C24-02590 FAC at ¶ 7.) NextGear alleges that Defendants defaulted on the Demand Promissory Note and Loan Security Agreement.

Plaintiff Area Target filed its initial complaint in C24-03143 against Defendant NextGear Capital alleging causes of action for (1) breach of written purchase contracts, (2) breach of fiduciary duty, (3) conversion, (4) conversion, (5) claim and delivery / replevin, (6) declaratory relief, and (7) injunctive relief. Area Target later filed an amended complaint on March 14, 2025 that omitted the conversion claims.

NextGear as Plaintiff in C24-02590 moved *ex parte* on October 3, 2024 for writ of possession of 33 vehicles which was granted by the Court the same day. On October 31, 2024 Defendants in C24-02590 moved *ex parte* to Quash the Writ of Possession. Subsequently, the Court issued an order that NextGear post an undertaking in the amount of \$1.5 million dollars and that the Motion to Quash be heard as a noticed Motion on December 9, 2024. The hearing date was later continued to December 16, 2024. After the hearing, on February 7, 2025, the Court denied the motion to quash.

On November 7, 2025, the two actions were ordered consolidated with NextGear's complaint deemed the lead case. NextGear's hearing on its motion for summary adjudication against Bay Motors and Mr. Aminzada in C24-02590 was heard on February 23, 2026. The court granted NextGear summary adjudication as to the first cause of action for breach of Demand of Promissory Note and Security Agreement, the second cause of action for breach of Individual Guaranty Agreement, and the third cause of action for Claim and Delivery.

Analysis

(3) Claim and Delivery as Against All Defendants

A cause of action for claim and delivery requires the following elements: (1) wrongful exercise of dominion by defendant; (2) over the property as to which plaintiff is owner or entitled to possession; (3) demand for return of property; (4) description of property; and (5) request for recovery of property, or damages. (*Law v. Heiniger* (1955) 132 Cal. App. 2d Supp. 898, 899.) "Claim and delivery is a remedy by which a party with a superior right to a specific item of personal property created, most commonly, by a contractual lien) may recover possession of that specific property before judgment." (*Wajfer Internal. Corp. v. Khorsandi* (1999) 69 Cal.App.4th 1261, 1271.) "[A]n action in claim and delivery is a possessory action, and that one entitled to possession is entitled to maintain the action even though he is not vested with the legal title." (*Feigin v. Kutchor* (1951) 105 Cal.App.2d 744, 747.)

The First Amended Complaint alleges that Area Target "was and is the true and legal owner of the Purchased Vehicles" and is "legally entitled to the exclusive possession thereof pursuant to Civil Code § 3379." (FAC at ¶¶ 44, 46.)

However, Defendant has adduced evidence that they held a superior security interest in the vehicles in Bay Motors inventory, which included the Purchased Vehicles.

Under section 9203 of the California Uniform Commercial Code, a security interest is created when three elements are present: (1) the debtor has authenticated (or signed) a security agreement describing the collateral, (2) value has been given, and (3) the debtor has rights in the collateral. (*New West Fruit Corp. v. Coastal Berry Corp.* (1991) 1 Cal.App.4th 92, 97 (*New West*); *Louis & Diederich, Inc. v. Cambridge European Imports, Inc.*, supra, 189 Cal.App.3d at p. 1586; UCC § 9203, subd. (b)(1), (2), (3)(A).) As the Court previously concluded in connection with the motion to quash in C24-02590,

NextGear had security interests in the vehicles in Bay Motors' inventory. In reaching this conclusion, the Court noted that Bay Motors executed and delivered to NextGear a written Demand Promissory Note and Security Agreement for the flooring of Bay Motors' inventory. (Smith Decl. iso Plaintiff's Ex Parte Application for Writ of Possession at ¶ 7, Ex. 1.) Under the Note, "Collateral" included but was not limited to "all of [Bay Motor]'s assets and properties, wherever located, including, without limitation, all equipment of any kind or nature; all vehicles and vehicle parts; all Inventory now owned or hereafter acquired, including, without limitation, all Lender Financed Inventory now owned or hereafter acquired[.]" (*Id.* at Ex. 1 at 1 of 12, ¶ 2(a).) Defendant in C24-02590 conceded that "[t]he defendants did enter into a contract with the plaintiff in which the defendant car dealership borrowed money from the plaintiff that was used to purchase vehicles that were sold in the regular course of the defendant dealership." (Aminzada Decl. at ¶ 3.) Finally, to perfect its security interest in the Collateral, NextGear filed UCC-1 Financing Statements in California pursuant to the Uniform Commercial Code. (Smith Decl. iso Plaintiff's Ex Parte Application for Writ of Possession at ¶ 8; Exhibit 2.) In that same order on the motion to quash in C24-02590, the Court concluded that Plaintiff Area Target was not a buyer in the ordinary course of business, such that they took the Purchased Vehicles free of a security interest.

Defendant has met its initial burden with respect to Plaintiff's claim and delivery cause of action. And, as Plaintiff has failed to file any opposition to the Motion, the Court finds that it has failed to meet its responsive evidentiary burden. Accordingly, the unopposed motion is granted as to the third cause of action.

(4) Declaratory Relief and (5) Injunctive Relief

Plaintiff's declaratory relief and injunctive relief causes of action are also premised on their allegation that they hold title to the Purchased Vehicles free and clear of any security interests. However, as discussed above, Defendant NextGear holds a security interest in the Purchased Vehicles, and Plaintiff Area Target was not a buyer in the ordinary course of business. Defendant has met its initial burden with respect to Plaintiff's declaratory relief and injunctive relief causes of action. And, as Plaintiff has failed to file any opposition to the Motion, the Court finds that it has failed to meet its responsive evidentiary burden. Accordingly, the unopposed motion is granted as to the third cause of action.

4. 9:00 AM CASE NUMBER: C25-00707
CASE NAME: JOHN MIXON VS. BYRON UNION SCHOOL DISTRICT
HEARING ON DEMURRER TO: RE 1ST AMENDED COMPLAINT
FILED BY: BYRON UNION SCHOOL DISTRICT
TENTATIVE RULING:

Defendant Byron Union School District ("Defendant") brings this demurrer to the First Amended Complaint ("FAC") of plaintiff John Mixon ("John Sr."), individually and as Guardian Ad Litem for John Mixon ("John Jr."), Ja'leyah Mixon ("Ja'leyah"), and Ja'niyah Mixon ("Ja'niyah" together with John Jr., John Sr., and Ja'leyah, "Plaintiff").

For the reasons discussed below, the Court **OVERRULES** Defendant's demurrer to Plaintiff's First Amended Complaint based on nonjoinder and **SUSTAINS** Defendant's demurrer to Plaintiff's second cause of action for intentional infliction of emotional distress, fourth cause of action for retaliation in violation of Labor Code section 1102.5, and fifth cause of action for retaliation in violation of

Education Code sections 44110-44114 et seq. Plaintiff may file and serve a second amended complaint within 10 days of notice of entry of this order. (Code Civ. Proc. § 472b; CRC, rule 3.1320(g).)

Meet and Confer

The meet and confer requirement has been satisfied. (John Laughlin Decl., ¶¶ 2-7; Code Civ. Proc., § 430.41, subd. (a)(3)(A).)

Legal Standard for Demurrer

In ruling on a demurrer, a court must treat as true all properly pleaded material facts contained in the complaint, but not contentions, deductions or conclusions of fact or law. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) “We also accept as true facts which may be inferred from those expressly alleged.” (*Cundiff v. GTE Cal., Inc.* (2002) 101 Cal.App.4th 1395, 1405.) A demurrer challenges “the sufficiency of the allegations in a complaint as a matter of law,” not the truth of the factual allegations in the pleading or the pleader’s ability to prove those allegations. (*Id.*, at pp. 1404-1405.)

Questions of fact cannot be decided on demurrer. (*Berryman v. Merit Prop. Mgmt., Inc.* (2007) 152 Cal.App.4th 1544, 1556.) Because a demurrer tests only the sufficiency of the complaint, a “court will not consider facts which have not been alleged in the complaint unless they may be reasonably inferred from the matters which have been pled or are proper subjects of judicial notice.” (*Hall v. Great W. Bank* (1991) 231 Cal.App.3d 713, 718, fn.7.) “[A]t the demurrer stage the complaint must be construed in the light most favorable to the plaintiff.” (*Wilson v. Houston Funeral Home* (1996) 42 Cal.App.4th 1124, 1138.)

Where a pleading includes a general allegation, such as an allegation of an ultimate fact, as well as specific allegations that adds *details* or *explanatory facts*, it is possible that a conflict or inconsistency will exist between the general allegation and the specific allegations. To handle these contradictions, California courts have adopted the principle that specific allegations in a complaint control over an inconsistent general allegation.” (*Perez v. Golden Empire Transit District* (2012) 209 Cal.App.4th 1228, 1235-1236, italics added.) In ruling upon demurrers, courts treat as being true “not only the complaint’s material factual allegations, but also facts that may be implied or inferred from those expressly alleged.” (*Poseidon Development, Inc. v. Woodland Lane Estates* (2007) LLC, 152 Cal.App.4th 1106, 1111-1112.)

“Liberality in permitting amendment is the rule, if a fair opportunity to correct any defect has not been given.” (*Angie M. v. Superior Court* (1995) 37 Cal.App.4th 1217, 1227.) “However, leave to amend should not be granted where, in all probability, amendment would be futile.” (*Foroudi v. The Aerospace Corp.* (2020) 57 Cal.App.5th 992, 1000 [citations and internal quotes omitted].)

Requests for Judicial Notice

Defendant asks the Court to take judicial notice of Plaintiff’s First Amended Complaint and exhibits 4, 5, 6, and 7 to the First Amended Complaint. The Court **grants** Defendant’s requests for judicial notice.

(Evid. Code, § 452, subd. (d).)

Background: Facts Alleged in FAC

Plaintiff filed this action on March 12, 2025. The currently operative First Amended Complaint (“FAC”) was filed on January 21, 2026. The FAC alleges claims against Defendant for: (1) negligence; (2) intentional infliction of emotional distress [“IIED”]; (3) negligent supervision; (4) retaliation in violation of Labor Code section 1102.5; and (5) retaliation in violation of Education Code sections 44110-44114 et seq.

Plaintiff alleges that Defendant repeatedly failed to enforce restraining orders against Julie Burns (“Ms. Burns”), the mother of John Jr., Ja’leyah, and Ja’niyah (together, the “Children”). (FAC, ¶ 7.) Despite being provided with copies of the restraining orders, Defendant permitted “repeated and unfettered access to the children at school premises.” (*Id.* at ¶ 8.) Despite this conduct occurring as far back as 2023, the focus of the FAC is on actions by Ms. Burns that took place subsequent to February 16, 2024. (*Id.* at ¶ 9.) This conduct essentially includes 4 instances of Ms. Burns visiting the school of the Children and either attempting to visit them or leaving candy, balloons, gifts or notes for them. (*Id.* at ¶ 14.)

On February 29, 2024, Defendant terminated Plaintiff John Sr. from employment as a basketball coach for Excelsior Middle School. (FAC, ¶16.) At that time, he had reported at least five incidents in which Defendant allowed Ms. Burns to contact the Children, allegedly in violation of a restraining order. (*Ibid.*) Further, on February 4, 2025, Defendant disclosed a behavioral issue with John Jr. to Ms. Burns and she reported Plaintiff to Child Protective Services, who visited him the next day. (*Id.* at ¶ 22.) After interviewing the Children, CPS closed the case against Plaintiff. (*Ibid.*)

Plaintiff seeks compensatory damages, general damages, injunctive relief, declaratory relief, costs, and punitive damages. (FAC, pp. 11-13.)

Discussion

Moving Papers

Defendant argues that the FAC improperly fails to join Ms. Burns as she is a necessary party to this action because adjudication of Plaintiff’s claims for relief will significantly affect her parental rights and because Defendant may, in her absence, face inconsistent obligations related to her maternal rights. (MPA ISO Demurrer, pp. 4-7.) Defendant further argues that the claim for IIED fails because that claim is not allowed to be maintained against a government entity like itself and Plaintiff has not pled outrageous conduct. (*Id.* at pp. 8-10.) Further, the FAC does not contain a factual allegation that any employee acted with the intention or reckless disregard of causing emotional distress to Plaintiff. (*Id.* at ¶ 10.)

Defendant argues that the fourth and fifth causes of action for retaliation fail because both claims exceed the scope of the Government Claims Notice filed in relation to this action. (MPA ISO Demurrer, pp. 11-12.) Defendant argues that the “Ongoing Issues” section of allegations in the FAC are not tied to any claims in the FAC and to the extent they are intended to be, they are conclusory and vague. (*Id.* at ¶¶ 12-14.)

Opposition

Plaintiff argues that Ms. Burns is neither a necessary nor an indispensable party to this action, and that the Court can grant complete relief to Plaintiff without Ms. Burns being a party. (Opposition, pp. 3-6.) Plaintiff also argues that Defendant's argument relies on disputed facts and that Plaintiff seeks enforcement of a court order, not a modification of Ms. Burns's rights. (*Id.* at pp. 4-6.) Plaintiff further contends that his retaliation claims fall within the scope of his government claims because they arise from the same fundamental operative facts. (*Id.* at pp. 6-8.)

Plaintiff then asserts that the "Ongoing Issues" section of the FAC is proper as it relates to Defendant's continuing course of misconduct and Plaintiff's other allegations. (Opposition, pp. 9-10.) With respect to his IIED claim, Plaintiff argues that it is properly pleaded because a reasonable trier of fact could conclude that the conduct was extreme and outrageous and because Defendant's challenge to this claim improperly asks the Court to resolve factual issues at the pleading stage. (*Id.* at pp. 10-11.)

Reply

Defendant reasserts on reply that Plaintiff's retaliation claims are barred because they exceed the scope of the government claim and distinguishes cases relied on by Plaintiff, including *Stockett v. Association of California Water Agencies Joint Powers Ins. Auth.* (2004) 34 Cal.4th 441, and *White v. Superior Court* (1990) 225 Cal.App.3d 1505. (Reply, pp. 2-5.) Defendant also contends that any actions that occurred prior to February 16, 2024, six months prior to Plaintiff filing the government claim on August 16, 2024, are not relevant to the claims asserted that were subject to a timely government claim. (*Id.* at pp. 5-6.) Defendant further states that Plaintiff cannot support his IIED claim on untimely allegations and that Plaintiff did not plead this claim properly because he pled that Defendant acted with a reckless disregard for the psychological well-being of Plaintiff's children. (*Id.* at pp. 6-8.) Finally, Plaintiff argues that the nonjoinder requires the Court to sustain the demurrer as to the injunctive relief sought and that it would be improper to order injunctive relief that "is directed at controlling Ms. Burns' conduct." (*Id.* at pp. 8-10)

Analysis

Joinder

"Whether a party qualifies as indispensable is ordinarily treated as a matter where the trial court has a large measure of discretion in weighing factors of practical realities and other considerations." (*Kaczorowski v. Mendocino County Bd. of Supervisors* (2001) 88 Cal.App.4th 564, 568.)

A person who is subject to service of process and whose joinder will not deprive the court of jurisdiction over the subject matter of the action shall be joined as a party in the action if (1) in his absence complete relief cannot be accorded among those already parties or (2) he claims an interest relating to the subject of the action and is so situated that the disposition of the action in his absence may (i) as a practical matter impair or impede his ability to protect that interest or (ii) leave any of the persons already parties subject to a substantial risk of incurring double, multiple, or otherwise

inconsistent obligations by reason of his claimed interest.

(Code Civ. Proc. § 389(a).)

Here, Defendant asserts that “Burns is a necessary party to the action because adjudication of Plaintiffs’ claims for relief with necessarily and significantly affect her rights and because the District may, in her absence, face inconsistent obligations related to her maternal rights.” (MPA ISO Demurrer, p. 5-7.) Plaintiff’s requests for injunctive relief essentially seek for Defendant to implement a policy for enforcing restraining orders when a parent or guardian of a student has a restraining order preventing a parent from contacting their children. (FAC, pp. 11-12; Exh. 3.) While Ms. Burns is not required to stay away from the Children’s school, she is seemingly required to stay 100 yards away from John Jr., and is not to contact the Children except as identified in the Court Ordered Parenting Plan, which allows contact and visitation under certain circumstances. (FAC, Exh. 3.) This lawsuit will not change or modify Ms. Burns’ rights to see or contact the Children and will not modify or alter any existing lawful restraining orders. Any inconsistent obligations Defendant has concerns over are not clear at this time as there will be no modification of Ms. Burns’ rights by this lawsuit. Determining any obligations on the part of Defendant vis-a-vis the restraining order would not raise the specter of Defendant having inconsistent obligations. Thus, the Court finds at this time there is no non-joinder of any required parties.

“A joinder question should be decided with reasonable promptness, but decision may properly be deferred if adequate information is not available at the time. Thus the relationship of an absent person to the action, and the practical effects of an adjudication upon him and others, may not be sufficiently revealed at the pleading stage; in such a case it would be appropriate to defer decision until the action was further advanced . . .” (*Union Carbide Corp. v. Superior Court* (1984) 36 Cal.3d 15, 22.) If circumstances or facts show at any later point that this decision should be revisited, this is subject to further review.

With respect to Defendant’s argument that “Plaintiffs’ nonjoinder of Burns requires sustaining the demurrer as to the injunctive relief sought” (Reply, p. 8), this cannot be done because demurrers need to go to an entire cause of action. (*Fremont Indemnity Co. v. Fremont General Corp.* (2007) 148 Cal.App.4th 97, 119 [“A demurrer must dispose of an entire cause of action to be sustained.”].)

The Court will overrule Defendant’s demurrer based on non-joinder.

IIED

“A cause of action for intentional infliction of emotional distress requires: (1) extreme and outrageous conduct by appellants with the intention of causing, or reckless disregard of the probability of causing, emotional distress; (2) severe or extreme emotional distress; and (3) actual and proximate causation of the emotional distress by the appellants’ outrageous conduct.” (*Belen v. Ryan Seacrest Productions, LLC* (2021) 65 Cal.App.5th 1145, 1164.)

Plaintiff argues that this claim is properly pled because Defendant was repeatedly provided with valid domestic violence restraining orders “and nevertheless repeatedly permitted Ms. Burns to access school grounds and contact the protected children, culminating in the incident where she entered campus disguised as Santa Claus and physically hugged, kissed, photographed, and filmed the minor Plaintiffs.” (Opposition, pp. 10-11.) Plaintiff argues that accepting those “allegations as true, sufficiently alleges conduct that a reasonable trier of fact could conclude was extreme and outrageous.” (*Id.* at p. 11.) Plaintiff cites *C.A. v. William S. Hart Union High School Dist.* (2012) 53 Cal.4th 861, for the proposition that “whether Defendant’s repeated disregard of valid court orders

after repeated notice constitutes outrageous conduct presents a factual question that cannot be resolved on demurrer.” (*Ibid.*) The Court disagrees. The *Williams* case did not involve a claim for IIED and did not involve a school that allegedly disregarded a restraining order such that a mother indirectly contacted her children, it involved “injuries to a student resulting from a teacher’s sexual assault.” (*C.A. v. William S. Hart Union High School Dist.*, *supra*, 53 Cal.4th at p. 870.)

“Conduct, to be ‘outrageous’ must be so extreme as to exceed all bounds of that usually tolerated in a civilized society. [Citation.] While the outrageousness of a defendant’s conduct normally presents an issue of fact to be determined by the trier of fact [Citation], the court may determine in the first instance, whether the defendant’s conduct may reasonably be regarded as so extreme and outrageous as to permit recovery.” (*Trerice v. Blue Cross of Cal.* (1989) 209 Cal.App.3d 878, 883]; see also *Miller v. National Broadcasting Co.* (1986) 187 Cal.App.3d 1463, 1487 [outrageous conduct is measured by the standard of the reasonable person, and not by that of a sensitive, or callous, person].)

Here, Plaintiff seeks to support the IIED claim with conduct not relevant to the claim, such as the allegations relating to Defendant allowing Ms. Burns to dress up as Santa Clause in December 2023 and hug, kiss, and photograph the Children. (Opposition, pp. 10-11.) However, the only conduct relevant to the IIED claim is the conduct that occurred subsequent to February 16, 2024. (FAC, ¶ 9 [“While the causes of actions in this FAC are based on the events occurring after February 16, 2024, earlier incidents are detailed below for context. . .”].) The conduct that is thus relevant is found in paragraph 14 of the FAC, subdivisions e, f, g, and h. With a focus on these relevant allegations which allege that Defendant allowed Ms. Burns to enter the campus and attempt to visit and visually monitor Ja’leyah and Ja’niyah, attempt to make contact with John Jr. and leave candy and balloons in the school office for John Jr., as well as allow Ms. Burns to enter Excelsior Middle School and leave gifts for all three minor children, and final instance of which Ms. Jones was allowed to enter the school and indirectly gave unauthorized gifts and handwritten notes to Ja’leyah and Ja’niyah. (FAC, ¶ 14, e-h.) The Court does not find these allegations sufficiently extreme and outrageous as to exceed all bounds of that usually tolerated in a civilized society such as to support a claim for IIED. (See *Moncada v. West Coast Quartz Corp.* (2013) 221 Cal.App.4th 768, 806 (“Liability has been found only where the conduct has been so outrageous in character, and so extreme in degree, as to go beyond all possible bounds of decency, and to be regarded as atrocious, and utterly intolerable in a civilized community.”) (internal quotes omitted).)

The Court will sustain Defendant’s demurrer to Plaintiff’s IIED cause of action.

Retaliation Claims

Plaintiff did not say anything in the government claim about John Sr. being terminated by Defendant or retaliation. (FAC, Exh. 6.) On the claim form there is a box for “Retaliation” that is not checked. (*Ibid.*) The only box that is checked is “School safety plans.” (*Ibid.*) The form asks for the dates of the alleged violations, and Plaintiff listed eight dates, none of them were the date that John Sr. was terminated. (FAC, ¶ 16, Exh 6 [Despite Defendant terminating John Sr. on February 29, 2024, the dates identified in the government claim form were: September 19, 2023, September 30, 2023, October 16, 2023, December 18, 2023, February 23, 2024, May 13, 2024, May 14, 2024, and July 7, 2024.].) For each of the eight dates Plaintiff identified, he specifically identifies conduct by Ms. Burns on all of them. (FAC, Exh. 6.) Plaintiff’s “Description of the Complaint” in the government claim asserts that:

The Bryon Union School District has allowed repeated violations of a

Court Ordered Restraining Order against Ms. Julie Burns as it relates to contact with John Mixon and minors John Mixon, Ja'Leyah Mixon, and Ja'Niyah Mixon. Administrators at Excelsior Middle School, and Timber Point Elementary School failed to take any measures to protect minors from their abuser and allowed unfettered access to children in violation of restraining order.

(FAC, Exh. 6.)

Plaintiff argues that *Stockett v. Association of Cal. Water Agencies Joint Powers Ins. Authority* (2004) 34 Cal.4th 441, "is directly analogous" to the situation here, and asserts that "there has been no 'complete shift in allegations.'" (Opposition, p. 7.) *Stockett* addresses this issue as below:

The claim, however, need not specify each particular act or omission later proven to have caused the injury. [Citation.] A complaint's fuller exposition of the factual basis beyond that given in the claim is not fatal, so long as the complaint is not based on an "entirely different set of facts." [Citation.] Only where there has been a "complete shift in allegations, usually involving an effort to premise civil liability on acts or omissions committed at different times or by different persons than those described in the claim" have courts generally found the complaint barred. [Citation.] Where the complaint merely elaborates or adds further detail to a claim, but is predicated on the same fundamental actions or failures to act by the defendants, courts have generally found the claim fairly reflects the facts pled in the complaint.

(*Stockett v. Association of Cal. Water Agencies Joint Powers Ins. Authority* (2004) 34 Cal.4th 441, 447.)

Here, the Court finds that Plaintiff's fourth cause of action for retaliation in violation of Labor Code section 102.5 and fifth cause of action for retaliation in violation of Education Code sections 44110-44114 et seq, which are both based on an allegation that "Defendants retaliated against Plaintiff MIXON by terminating his employment with Defendants" (FAC, ¶¶ 48, 54), is outside the scope of the government claim form submitted by Plaintiff to Defendant. (FAC, Exh. 6.) As *Stockett* held, "[a] complaint's fuller exposition of the factual basis beyond that given in the claim is not fatal, so long as the complaint is not based on an 'entirely different set of facts.'" Here, the fact that Defendant terminated Plaintiff is wholly missing from the government claim form. (FAC, Exh. 6.) The retaliation option on the claim form is not checked; the date of termination is not identified. (*ibid.*) This is not an elaboration or further detail; the termination is an entirely distinct fundamental wrong alleged by Plaintiff. It involves an effort to premise civil liability on an act committed at a different time than as described in the claim. (*White v. Superior Court* (1990) 225 Cal.App.3d 1505, 1511.)

This is not just pleading a different legal theory based on the same set of facts. Plaintiff argues that he is not premising liability on different events, but he is; the termination of John Sr. is a distinct legal event from the legal event consisting of Defendant not enforcing a restraining order that Defendant was put on notice for. Terminating Plaintiff is not the same underlying incident as failing to enforce a restraining order.

The Court will sustain Defendant's demurrer to Plaintiff's retaliation causes of action.

Leave to Amend

"Liberality in permitting amendment is the rule, if a fair opportunity to correct any defect has not been given." (*Angie M. v. Superior Court* (1995) 37 Cal.App.4th 1217, 1227.) The Court will grant Plaintiff leave to amend.

Ruling

Based on the analysis above, the Court **OVERRULES** Defendant's demurrer to Plaintiff's First Amended Complaint based on nonjoinder and **SUSTAINS** Defendant's demurrer to Plaintiff's second cause of action for intentional infliction of emotional distress, fourth cause of action for retaliation in violation of Labor Code section 1102.5, and fifth cause of action for retaliation in violation of Education Code sections 44110-44114 et seq. Plaintiff may file and serve a second amended complaint within 10 days of notice of entry of this order. (Code Civ. Proc. § 472b; CRC, rule 3.1320(g).)

5. 9:00 AM CASE NUMBER: C25-00707
CASE NAME: JOHN MIXON VS. BYRON UNION SCHOOL DISTRICT
***HEARING ON MOTION IN RE: STRIKE PORTIONS OF PLTFS COMPLAINT**
FILED BY: BYRON UNION SCHOOL DISTRICT
TENTATIVE RULING:

Defendant Byron Union School District ("Defendant") brings this motion to strike ("Motion") to the First Amended Complaint ("FAC") of plaintiff John Mixon ("John Sr."), individually and as Guardian Ad Litem for John Mixon ("John Jr."), Ja'leyah Mixon ("Ja'leyah"), and Ja'niyah Mixon ("Ja'niyah" together with John Jr., John Sr., and Ja'leyah, "Plaintiff").

For the reasons discussed below, the Court **GRANTS** Defendant's motion to strike as to the four prayers for relief seeking punitive damages and **DENIES** Defendant's motion to strike in all other regards. Plaintiff is granted leave to amend.

Meet and Confer

The meet and confer requirement has been satisfied. (John Laughlin Decl., ¶¶ 2-7; Code Civ. Proc., § 435.5, (a)(3)(A).)

Legal Standard

The Court may strike allegations that are "irrelevant, false or improper matter" or any portion of a pleading "not drawn . . . in conformity with the laws of this state." (Code Civ. Proc., § 436(a) and (b).) Like a demurrer, the grounds for a motion to strike must appear on the face of the pleading or be based on a matter subject to judicial notice under Evidence Code §§ 452 and 453. (Code Civ. Proc., § 437(a) and (b).) "A motion to strike, like a demurrer, challenges the legal sufficiency of the complaint's allegations, which are assumed to be true." (*Blakemore v. Superior Court* (2005) 129 Cal.App.4th 36, 53 [citing *Clauson v. Superior Court* (1998) 67 Cal.App.4th 1253, 1255].) It is in the Court's discretion under Code of Civil Procedure section 436 whether to strike portions of the complaint. (Code Civ. Proc. § 436; *Clements v. T. R. Bechtel Co.* (1954) 43 Cal.2d 227, 242; *Colden v. Broadway State Bank* (1936) 11 Cal.App.2d 428, 429.)

Requests for Judicial Notice

Defendant asks the Court to take judicial notice of Plaintiff's First Amended Complaint and exhibits 1, 2, 3, 4, 5, 6, and 7 to the First Amended Complaint. The Court **grants** Defendant's requests for judicial notice. (Evid. Code, § 452, (d).)

Background: Facts Alleged in FAC

Plaintiff filed this action on March 12, 2025. The currently operative First Amended Complaint ("FAC") was filed on January 21, 2026. The FAC alleges claims against Defendant for: (1) negligence; (2) intentional infliction of emotional distress ["IIED"]; (3) negligent supervision; (4) retaliation in violation of Labor Code section 1102.5; and (5) retaliation in violation of Education Code sections 44110-44114 et seq.

Plaintiff alleges that Defendant repeatedly failed to enforce restraining orders against Julie Burns ("Ms. Burns"), the mother of John Jr., Ja'leyah, and Ja'niyah (together, the "Children"). (FAC, ¶ 7.) Despite being provided with copies of the restraining orders, Defendant permitted "repeated and unfettered access to the children at school premises." (*Id.* at ¶ 8.) Despite this conduct occurring as far back as 2023, the focus of the FAC is on actions by Ms. Burns that took place subsequent to February 16, 2024. (*Id.* at ¶ 9.) This conduct essentially includes 4 instances of Ms. Burns visiting the school of the Children and either attempting to visit them or leaving candy, balloons, gifts or notes for them. (*Id.* at ¶ 14.)

On February 29, 2024, Defendant terminated Plaintiff John Sr. from employment as a basketball coach for Excelsior Middle School. (FAC, ¶16.) At that time, he had reported at least five incidents in which Defendant allowed Ms. Burns to contact the Children, allegedly in violation of a restraining order. (*Ibid.*) Further, on February 4, 2025, Defendant disclosed a behavioral issue with John Jr. to Ms. Burns and she reported Plaintiff to Child Protective Services, who visited him the next day. (*Id.* at ¶ 22.) After interviewing the Children, Child Protective Services closed the case against Plaintiff. (*Ibid.*)

Plaintiff seeks compensatory damages, general damages, injunctive relief, declaratory relief, costs, and punitive damages. (FAC, pp. 11-13.)

Discussion

Moving Papers

Defendant asks the Court to strike the following from the FAC:

FAC Paragraph 14, Subparagraphs "a" through "d";

FAC Paragraphs 21–26;

Any and all references to "reckless," "conscious disregard," and "gross negligence," including Paragraphs 28 and 32 and the subheading to the First Cause of Action;

Three Prayers for Injunctive Relief; and

Four Prayers for Punitive Damages.

(Notice of Motion to Strike, p. 2.)

Defendant argues that the prayers for injunctive relief are improper because: (1) it would impact a third party, Ms. Burns; (2) any injunctive relief provided to Plaintiffs under court order might conflict with obligations this District might owe to Ms. Burns under various statutory authorities and

regulations governing the rights of Burns and other parents vis-à-vis the school their children attend; (3) it is an open question whether Defendant would even be bound to such a request as Plaintiffs' prayer for relief under the plain language of the restraining orders themselves; (4) the relief sought would dictate school security policy, a matter uniquely suited to the expertise of the District; (5) it is not at all clear from the FAC that the almost five-year-old Court Ordered Parenting Plan (which is what was incorporated into the "Restraining Order") is still in effect in its original, unmodified state; and (6) this Court cannot take on jurisdiction in a custodial dispute. (MPA ISO Motion to Strike, pp. 3-4.)

Defendant argues that Government Code sections 818 and 825 exempt California public entities from punitive damages. (MPA ISO Motion to Strike, pp. 3-4.)

Defendant argues that paragraph 14, subparagraphs (a), (b), (c), and (d), of the FAC are untimely and barred. (MPA ISO Motion to Strike, p. 5.) Only conduct from February 16, 2024 is at issue and the allegations from those subparagraphs occurred prior to February 16, 2024, thus they are foreclosed as a matter of law and must be stricken from the FAC because all of them occurred before the six-month lookback period of the August 16, 2024, Government Claims Notice. (*Ibid.*)

Defendant argues that paragraphs 21 to 26, labeled "Ongoing Issues," are not directly tied to any of the five claims and are irrelevant to any cause of action. (MPA ISO Motion to Strike, pp. 5-6.) The actions described here all occurred subsequent to Plaintiff's filing of his government claim, which occurred on August 16, 2024, and so these allegations are barred as a matter of law and must be stricken. (*Id.* at p. 6.) Defendant further asks the Court to strike various references to gross negligence, reckless, and conscious disregard, that appear in the FAC. (*Ibid.*)

Opposition

Plaintiff argues that the prayer for injunctive relief is legally available and does not ask the Court to adjudicate parental rights because the requested injunction would regulate Defendant's conduct and not alter custody, visitation, or Ms. Burns' parental rights. (Opposition, pp. 3-6.)

Plaintiff asserts that the pre-February 16, 2024 incidents are relevant context that establish notice, knowledge, foreseeability and state of mind. (Opposition, pp. 6-8.) Plaintiff further contends that paragraphs 21 to 26, which involve allegations of conduct occurring subsequent to the submission of the government claim, are relevant allegations of continuing retaliatory conduct and that Defendant cannot establish that every word of those paragraphs is irrelevant, false, or improper, as a matter of law. (*Id.* at pp. 8-9.) Regarding punitive damages, Plaintiff acknowledges that they are barred against Defendant but remain available against the Doe defendants. (*Id.* at pp. 9-10.) Finally, Plaintiff argues that the FAC adequately supports the allegations of reckless, conscious disregard, and gross negligence. (*Id.* at pp. 10-12.)

Reply

On reply, Defendant asserts that the injunctive relief prayers still require the Court to regulate a non-party's rights. (Reply, pp. 2-3.) Defendants also argues that subparagraphs (a) to (d) of paragraph 14 and paragraphs 21 – 26 remain time barred regardless of "context" or "ongoing issues" label. (*Id.* at pp. 3-4.) Plaintiff admits the punitive damages are not proper against Defendant and the Doe defendant argument does not save them. (*Id.* at p. 4.) Finally, the conscious disregard, gross negligence, and reckless allegations remain conclusory labels. (*Ibid.*)

Analysis

"A notice of motion to strike a portion of a pleading must quote in full the portions sought to be stricken except where the motion is to strike an entire paragraph, cause of action, count, or defense.

Specifications in a notice must be numbered consecutively.” (Cal. Rules of Court, rule 3.1322(a).)

Here, Defendant has not complied with rule 3.1322(a) of the California Rules of Court because Defendant did not number the specifications consecutively—or at all for that matter—and failed to either quote in full the portions sought to be stricken except where the motion is to strike an entire paragraph, cause of action, count, or defense.

FAC Paragraph 14, Subparagraphs “a” through “d” and Paragraphs 21–26

With respect to the allegations related to conduct that occurred before and after the relevant government claim period, the Court exercises its discretion to deny the motion to strike those allegations. While there may be little need for such text, the Court does not necessarily view the text as improper, false, or irrelevant. Accordingly, the motion to strike is denied as to subparagraphs (a) through (d) of paragraph 14 and paragraphs 21 through 26 of the FAC.

Any and all references to “reckless,” “conscious disregard,” and “gross negligence,” including Paragraphs 28 and 32 and the subheading to the First Cause of Action

The Court denies the motion to strike as to its request to strike “any and all references to” reckless, conscious disregard, and gross negligence. A notice of motion to strike a portion of a pleading “must quote in full the portions sought to be stricken except where the motion is to strike an entire paragraph, cause of action, count, or defense.” (Cal Rules of Court, Rule 3.1322.) Here, Defendant’s request is not focused enough for the Court to ignore the procedural shortcomings and the Court thus denies the motion to strike as to these references.

With respect to paragraph 28 and 32, despite using the words reckless and conscious disregard, the rest of each paragraph contains allegations that are quite ordinary and run of the mill. Paragraph 28 of the FAC alleges that “Defendants negligently, carelessly, recklessly, and/or unlawfully allowed Ms. Burns to contact minor Plaintiffs while on school grounds in violation of a court-ordered restraining order.” Paragraph 32 of the FAC alleges that “Defendants’ repeated and knowing failure to enforce court-issued restraining orders despite multiple warnings, demonstrates a reckless and conscious disregard for Plaintiffs’ well being, and constitutes gross negligence.” Due to the overreach of the motion to strike as to these entire paragraphs, the motion to strike is denied as to paragraphs 28 and 32 of the FAC. The request for the Court to strike the entire subheading of the first cause of action is denied for the same reason.

Three Prayers for Injunctive Relief

The request to strike the three prayers for injunctive relief is also denied. The Court disagrees with Defendant that a possible injunction down the road that has not yet been crafted would modify any valid existing restraining order or affect the rights of a third person not a party in this matter or infringe on Defendant’s expertise. At this stage of this case, it is still an open question as to what extent, if any, Defendant is bound by the restraining order, which explicitly directs and governs the conduct of Ms. Burns, not Defendant. (FAC, Exhs. 1-3.)

Four Prayers for Punitive Damages

The Court strikes the four prayers for relief that ask for punitive damages. Plaintiff admits that there are no punitive damages allowed against Defendant yet wishes to keep them in for the Doe defendants. However, the punitive damage allegations do not make clear that they are only pertaining to the Doe defendants and are thus improper and stricken.

Ruling

Based on the analysis above, the Court **GRANTS** Defendant's motion to strike as to the four prayers for relief seeking punitive damages and **DENIES** Defendant's motion to strike in all other regards. Plaintiff is granted leave to amend.

6. 9:00 AM CASE NUMBER: C25-00713
CASE NAME: PRAVEEN GUPTA VS. THE VINTNER CONDOMINIUM HOMEOWNERS ASSOCIATION
*HEARING ON MOTION IN RE: STRIKE PUNITIVE DAMAGES CLAIMS IN SECOND AMENDED COMPLAINT
FILED BY: NEW PIPES INC
TENTATIVE RULING:

Before the Court is Defendant New Pipes, Inc.'s Motion to Strike Punitive Damages Claims in Second Amended Complaint

Defendant filed and served its Demurrer and declaration in support on April 9, 2026. Thereafter, on April 14, it filed a three-part Request for Judicial Notice in support thereof. The unopposed RJN is **GRANTED**. Counsel is reminded that all papers supporting its motion should be filed and served together. (See e.g. Code of Civil Procedure § 1005(b).)

Initial Consideration

Plaintiff filed a declaration which attached four documents labeled as Exhibits A-D. "[E]lectronic exhibits **must include** electronic bookmarks with links to the first page of each exhibit and with bookmark titles that identify the exhibit number or letter and briefly describe the exhibit." (Cal. R. Ct. 3.1110 (f)(4) emphasis added.) The declaration did not include any bookmarks, much less ones with the required information. Plaintiff is reminded to comply with all Rules of Court going forward.

Factual Allegations

See Line 7.

Legal Standard

Any party, within the time allowed to respond to a pleading, may serve and file a notice of motion to strike the whole or any part of the pleading. (Code Civ. Proc. § 435 (b)(1); Cal. R. Ct., Rule 3.1322(b).)

The court may, upon a motion or at any time in its discretion and upon terms it deems proper: (1) strike out any irrelevant, false, or improper matter inserted in any pleading; or (2) strike out all or any part of the pleading not drawn or filed in conformity with the laws of California, a court rule, or an order of the court. (Code Civ. Proc. §§ 436(a)-(b); *Stafford v. Schultz* (1954) 42 Cal.2d 767, 782 ["matter in a pleading which is not essential to the claim is surplusage; probative facts are surplusage and may be stricken out or disregarded"].) An "irrelevant" matter includes allegations not essential to the claim or defense, as well as allegations "neither pertinent to nor supported by an otherwise sufficient claim or defense." (Code Civ. Proc. § 431.10 (b).)

Analysis

Defendant seeks to strike the allegations of the SAC that relate to Plaintiff's claim for punitive

damages against it.

Under Civil Code §3294, punitive damages may be awarded “[i]n an action for the breach of an obligation not arising from contract, where it is proven by clear and convincing evidence that the defendant has been guilty of oppression, fraud, or malice.” (Civil Code § 3294(a).)

“‘Malice’ means conduct which is intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others.” (Civ. Code, § 3294.) “*Animus malus* or evil motive, then, is the central element of the malice which justifies an exemplary award.” (*G. D. Searle & Co. v. Superior Court* (1975) 49 Cal.App.3d 22, 30.) “‘Oppression’ means ‘subjecting a person to cruel and unjust hardship in conscious disregard of his rights.’” (*Monge v. Superior Court* (1986) 176 Cal.App.3d 503, 511.)

To support punitive damages, the complaint must allege the ultimate facts of the defendant’s oppression, fraud or malice. (*Cyrus v. Haveson* (1976) 65 Cal.App.3d 306, 316.)

Regarding a request for punitive damages against a corporate entity, such an award “must rest on the malice of the corporation’s employees.” (*Cruz v. Homebase* (2000) 83 Cal.App.4th 160, 167.) However, the “law does not impute every employee’s malice to the corporation. Instead, the punitive damages statute requires proof of malice among corporate leaders: the ‘officer[s], director[s], or managing agent[s].’” (*Ibid.* quoting Cal. Civ. Code § 3294, subd. (b).)

A ‘managing agent’ is an employee “who ‘exercise[s] substantial discretionary authority over decisions that ultimately determine *corporate policy*.’” (*Ibid.* italics in original.) ‘Corporate policy’ is “the general principles which guide a corporation, or rules intended to be followed consistently over time in corporate operations.” (*Ibid.*) “A ‘managing agent’ is one with substantial authority over decisions that set these general principles and rules.” (*Id.* at 167-68.)

Corporate Liability

New Pipes argues that the SAC fails to allege sufficient facts to required to show that an officer, director, or managing agent acted maliciously such that punitive damages can be awarded against the corporate entity.

Plaintiff argues that the SAC sufficiently alleges such facts at paragraph 78A, which reads, in pertinent part:

“New Pipes also acted with fraud, oppression, and/or malice within the meaning of Civil Code section 3294, through conduct authorized, directed, approved, and/or knowingly ratified by its officer(s), director(s), and/or managing agent(s), including the Responsible Managing Officer or Responsible Managing Employee responsible for supervising permit compliance, project scope, and inspection obligations for permit PLMB-2021-0285.”

Plaintiff argues that a Responsible Managing Office or Employee (RMO/E) is a role the Contractors State License Law requires every corporate licensee to designate, and the individual must be ‘actively engaged’ in the license classification at that time. (Opp. at 7:22-8:3 citing Bus. & Prof. Code § 7068(c)(4).)

This classification, however, does not require that such an employee be on ‘officer, director, or managing agent’ of the corporation. All that is required is that the individual be a ‘bona fide employee’ of the company – which means an ‘employee who is permanently employed by the

applicant.’ (*Id.* at (c)(2)(A).)

As noted by New Pipes, the SAC “does not allege the name of the RMO or RME, when that person learned of the allegedly fraudulent permit description or unpermitted work, what actions that person took in response, or any other facts showing authorization of the conduct.” (Reply at 7:28-8:3.) The only reference to any particular person in the SAC is to “New Pipes’ employee James Vinyard” who is described as the person “listed as the inspection contact on the permit described herein.” (¶ 5.) There are no allegations describing Mr. Vinyard’s title or duties at New Pipes. Nor are there any allegations indicating what he did that rises to the level of malice.

The mere allegation that an officer, director, or managing agent was aware of the conduct is not sufficient to allege punitive damages. “Pleading in the language of the statute is acceptable **provided that sufficient facts are pleaded to support the allegations**. [Citation omitted.] The terms themselves are conclusory, however. [Emphasis added.]” (*Blegen v. Superior Court* (1981) 125 Cal.App.3d 959, 963.)

“In order to survive a motion to strike an allegation of punitive damages, the ultimate facts showing an entitlement to such relief must be pled by a plaintiff.” (*Clauson v. Superior Court* (1998) 67 Cal.App.4th 1253, 1555.) “Ultimate facts are those ‘on which liability depends,’ as distinguished from both the evidence proving those facts [citation] and conclusions of law. [citation]” (*Estes v. Eaton Corp.* (2020) 51 Cal.App.5th 636, 643 fn. 2.) “They are the ‘facts constituting the cause of action.’” (*Ibid.*) “Put another way, they are ‘[a]ll the facts that are *material* to the cause of action – i.e., the facts that make a difference to the outcome of the case.” (*Ibid.*)

Here, there are no allegations indicating that an officer, director, or managing agent had any connection to the actions presented in the SAC. There are no allegations that any particular person – much less someone in one of those positions – ratified or even knew about the issues presented in this case. The conclusory allegation that some unidentified ‘officer, director, or managing agent’ “including the Responsible Managing Officer or Responsible Managing Employee responsible for supervising permit compliance” is insufficient to state a claim for punitive damages against a corporation.

As Plaintiff has failed to properly plead a basis for punitive damages against a corporate entity, the Court need not address the parties’ other arguments at this time.

Leave to Amend

“Our Supreme Court has observed that where ‘plaintiff has not had an opportunity to amend the complaint in response to the demurrer [or motion to strike], leave to amend is liberally allowed as a matter of fairness, unless the complaint shows on its face that it is incapable of amendment.’” (*Eghtesad v. State Farm General Ins. Co.* (2020) 51 Cal.App.5th 406, 412 quoting *City of Stockton v. Superior Court* (2007) 42 Cal.4th 730, 747.)

The SAC is the first time the Court has substantively addressed these issues – as the earlier rulings on the two previous pleadings were based purely on standing grounds. The SAC does not show on its face that it is incapable of amendment. As such, leave to amend is appropriate under the circumstances of this case.

Conclusion

The Court rules as follows:

- New Pipes’ motion to strike is **GRANTED**.

- Plaintiff is **GRANTED** leave to amend. Leave is limited to pleading additional facts to support Plaintiff's punitive damages request.

Plaintiff shall file any amended complaint within 10 days of notice of entry of the order on this motion.

7. 9:00 AM CASE NUMBER: C25-00713
CASE NAME: PRAVEEN GUPTA VS. THE VINTNER CONDOMINIUM HOMEOWNERS ASSOCIATION
HEARING ON DEMURRER TO: 2ND AMENDED COMPLAINT
FILED BY: NEW PIPES INC

TENTATIVE RULING:

Before the Court is Defendant New Pipes, Inc.'s Demurrer to Second Amended Complaint.

Defendant filed and served its Demurrer and declaration in support on April 9, 2026. Thereafter, on April 14, it filed a three-part Request for Judicial Notice in support thereof. The unopposed RJN is **GRANTED**. Counsel is reminded that all papers supporting its motion should be filed and served together. (See e.g. Code of Civil Procedure § 1005(b).)

Initial Considerations

As pointed out by Defendants, Plaintiff's opposition memorandum exceeds ten pages but did not include a table of contents or table of authorities. "A memorandum that exceeds 10 pages must include a table of contents and a table of authorities." (Cal. R. Ct. 3.1113 (f).)

In addition, Plaintiff filed a declaration which attached four documents labeled as Exhibits A-D. "[E]lectronic exhibits **must include** electronic bookmarks with links to the first page of each exhibit and with bookmark titles that identify the exhibit number or letter and briefly describe the exhibit." (Cal. R. Ct. 3.1110 (f)(4) emphasis added.) The declaration did not include any bookmarks, much less ones with the required information.

Plaintiff is reminded to comply with all Rules of Court going forward.

Procedural Background

This matter relates to alleged improper repairs and construction impacting real property located at 8975 Alcosta Blvd., Unit 107, ("Property") which is within the Vintner Condominium Association.

Plaintiff filed the initial Complaint on March 13, 2025. The initial Complaint included Praveen Gupta and Wisdom Tree Properties, LLC as plaintiffs. Defendant Vintner Condominium Homeowners' Association ("Vintner") filed a demurrer on April 18, 2025. A basis for the demurrer was that the Complaint was uncertain as to who the proper plaintiff was and that if Wisdom Tree was properly a plaintiff that Mr. Gupta could not represent it given that he is not an attorney. The Court sustained the demurrer finding that the Complaint was uncertain as to what plaintiff owned the Property during the relevant time and the basis for the claims for damages.

Plaintiff filed the First Amended Complaint on September 15, 2025. The FAC alleged a total of nine causes of action. Five of those causes of action were alleged against moving Defendant New Pipes: Trespass (2nd CoA); Private Nuisance (3rd CoA); Negligence (4th CoA); Declaratory Relief (6th CoA); and Negligent Undertaking (9th CoA). Defendant New Pipes demurred to the Negligence, Declaratory Relief, and Negligent Undertaking causes of action as being uncertain and failing to allege sufficient

facts. New Pipes also raised standing concerns given that the FAC appeared to include claims on behalf of a trust which owned the Property during portions of the time at issue.

The Court sustained New Pipes' demurrer as to all causes of action based on the lack of standing. Plaintiff was given leave to amend. Given the lack of standing, the Court did not rule on New Pipes' other arguments.

Plaintiff filed the operative Second Amended Complaint on March 10, 2026. The SAC alleges four causes of action against New Pipes: Trespass (2nd CoA); Private Nuisance (3rd CoA); Negligence (4th CoA); and Negligent Undertaking (9th CoA). Thus, Plaintiff removed the declaratory relief cause of action against New Pipes but continues to assert the four other causes of action alleged in the FAC. New Pipes demurs to each of the four causes of action.

Legal Standard

"The function of a demurrer is to test the sufficiency of the complaint as a matter of law." (*Holiday Matinee, Inc. v. Rambus, Inc.* (2004) 118 Cal.App.4th 1413, 1420.) A complaint "is sufficient if it alleges ultimate rather than evidentiary facts" (*Doe v. City of Los Angeles* (2007) 42 Cal.4th 531, 550 ("*Doe*")), but the plaintiff must set forth the essential facts of his or her case "with reasonable precision and with particularity sufficient to acquaint [the] defendant with the nature, source and extent" of the plaintiff's claim. (*Doheny Park Terrace Homeowners Assn., Inc. v. Truck Ins. Exchange* (2005) 132 Cal.App.4th 1076, 1099.) A complaint must be "liberally construed" and a demurrer "overruled if any cause of action is stated by the plaintiff." (*Amacorp Industrial Leasing Co. v. Robert C. Young Associates, Inc.* (1965) 237 Cal.App.2d 724, 727.)

Legal conclusions are insufficient. (*Id.* at 1098–99; *Doe* at 551, fn. 5.) The Court "assume[s] the truth of the allegations in the complaint, but do[es] not assume the truth of contentions, deductions, or conclusions of law." (*California Logistics, Inc. v. State of California* (2008) 161 Cal.App.4th 242, 247.) A demurrer lies only for defects appearing on the face of the complaint or from matters of which the court must or may take judicial notice. (CCP § 430.40; see *Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) A demurrer may be filed to one of several causes of action in a complaint. (Cal. R. Ct. 3.1320(b).)

Analysis

New Pipes makes several arguments as to how the SAC is defective. First, it argues that the trespass, nuisance, and negligence causes of action are time barred based on the applicable statutes of limitations. Second, it argues that the nuisance and negligent undertaking causes of action are barred as they were added without leave of court. Finally, New Pipes argues that the negligent undertaking cause of action is deficient because the SAC fails to state facts sufficient to constitute a cause of action – in that the plumbing installed by New Pipes does not constitute an 'undertaking.'

Statute of Limitations

"The defense of statute of limitations may be asserted by general demurrer if the complaint shows on its face that the statute bars the action." (*E-Fab, Inc. v. Accountants, Inc.* (2007) 153 Cal.App.4th 1308, 1315, citation omitted.) "There is an important qualification, however: 'In order for the bar of the statute of limitations to be raised by demurrer, the defect must clearly and affirmatively appear on the face of the complaint; it is not enough that the complaint shows merely that the action may be barred.'" (*Id.* at 1315-16, quoting *McMahon v. Republic Van & Storage Co., Inc.* (1963) 59 Cal.2d 871, 874.) "The ultimate question for review is whether the complaint showed on its face that the action was barred by a statute of limitations, for only then may a general demurrer be sustained and a judgment of dismissal be entered thereon.'" (*Id.* at 1316 quoting *Moseley v. Abrams* (1985) 170

Cal.App.3d 355, 358.)

Trespass and Nuisance

The parties focus their arguments on whether the SAC alleges a ‘permanent’ or a ‘continuing’ trespass/nuisance. As such, the Court will focus on those arguments.

Relevant Allegations

“On or about October 25, 2021, New Pipes began plumbing work at the Vintner complex....” (¶ 12.) The work started without the proper permit. (*Ibid.*) The application for the permit was not filed until October 29, 2021 – four days later. (*Ibid.*) The permit described the installation of a “cold water line to kitchen and 1 hose bib through ceiling of unit.” (¶ 13.)

“The actual work performed was the installation of a HOA common-area water main bypass routed through the interior of Plaintiffs Unit – a materially different, more extensive, and far more intrusive scope of work.” (*Ibid.*) On December 6, Plaintiff served written notice on New Pipes (and the HOA) disputing the routing of the plumbing through the Property and objecting to the work. (¶ 14.) New Pipes did not cease or redirect the work. (*Ibid.*)

The City scheduled inspections of the work on November 30 and December 1, 2021. (¶ 15.) Both inspections resulted in ‘no-show’ failures because no New Pipes representative appeared. (*Ibid.*) On December 8, 2021, the inspection identified fire-caulking and related wall-construction deficiencies in the permit work. (¶ 16.) “Those deficiencies remained outstanding when HOA and New Pipes abandoned the work, and HOA refused to complete the required corrective repairs, instead requiring Plaintiff to undertake them.” (*Ibid.*)

“On December 14, 2021, the City inspector issued a “Partial Pass/Incomplete” result with the notation ‘Call for final when complete.’” (¶ 18.) “The required final inspection was never requested. The permit remained open and incomplete from that date forward.” (*Ibid.*) The permit expired on June 13, 2022, without a required final inspection or sign-off. (¶ 19.) The permit “has remained expired, open, and unfinished from June 13, 2022 through the date of this filing.” (*Ibid.*)

Permanent vs. Temporary Trespass/Nuisance

New Pipes’ main argument is that the plumbing should be considered ‘permanent’ and as such, the statute of limitations should be deemed to commence when the encroachment began. Plaintiff counters that the plumbing is a ‘continuing’ trespass/nuisance and as such the statute of limitations has not run.

Initially, the Court notes that the law relating to trespass and nuisance – pertaining to the issue of permanence of the encroachment – overlaps and appears to use the same standard. As such, the Court will not differentiate between the two causes of action related to this issue.

The California Supreme Court long ago discussed the difference between a permanent and ‘temporary’ or ‘abatable’ encroachment. In *Kafka v. Bozio* (1923) 191 Cal. 746, the Court stated:

Where a trespass consists of a physical entry upon the lands of another and taking possession thereof under such circumstances as to indicate an intention that the trespass shall be permanent, the law may regard the wrong done in such case as complete at the time of the entry and allow recovery in a single action of all damages resulting therefrom, including prospective as well as past damages. ...

But where the wrong consists of an encroachment which was not willful but

unintentional, and which is abatable, the law does not presume that such an encroachment will be permanently maintained. The maintenance of such an encroachment is a continuing trespass or nuisance [citations], and every continuance thereof amounts to a new nuisance for which successive actions will lie. (*Id.* at 750-751.)

While the courts are clear that there are two primary classifications of trespass/nuisance, “[c]lear-cut distinctions between permanent and temporary nuisances are elusive at best.” (*Spar v. Pac Bell* (1991) 235 Cal.App.3d 1480, 1483.) As the *Spar* court observed, a notable treatise explained:

“Various rules or tests have been laid down for determining the classification of nuisances as permanent or temporary, but the distinctions between permanent nuisance and continuing or temporary nuisances are not always clearly delineated, and no short and all-inclusive rule or test has evolved. Rather, it seems that the cases must be decided in accordance with exact precedents rather than on principle. In many instances the distinction depends upon the particular facts, the measure of damages, whether the condition is negligently operated, or whether it is reasonably practicable for the condition to be abated.” (*Id.* at 1484 quoting 58 Am.Jur.2d, Nuisance, § 26, p. 688.)

The *Spar* court then went on to “review the legal precedents that have evolved in California jurisprudence” regarding this issue. (*Id.* at 1484-88.) It noted that cases “which have found the nuisance complained of to be ‘unquestionably permanent’ in nature have involved solid structures, such as a building encroaching upon the plaintiff’s land,” citing cases involving concrete piers extending across a boundary line, a steam railroad operating on plaintiff’s land, and a buried sewer line running through plaintiff’s property. (*Id.* at 1484.)

The *Spar* court summarized: “In cases of a permanent trespass or nuisance, the damages are complete when the nuisance comes into existence and plaintiff is required to bring one action for all past, present and future damages within three years after the permanent nuisance/trespass has occurred.” (*Id.* at 1485.)

“In contrast, the two primary characteristics of a continuing nuisance or trespass are: (1) the nuisance/trespass is abatable, and/or (2) the damages from the nuisance/trespass may vary over time. ‘[I]f an encroachment . . . is abatable, the law does not presume that such an encroachment will be permanently maintained.’” (*Ibid.*)

“In determining whether a nuisance/trespass is continuing in nature, a few cases emphasize the characteristic of whether the damages may vary over time.” (*Spar*, supra, 235 Cal.App.3d at 1485.) “Most cases, however, analyze the condition to determine whether the nuisance/trespass may be discontinued.” (*Ibid.*) “In fact, our Supreme Court had determined the crucial distinction between a permanent and continuing nuisance is whether the nuisance may be discontinued or abated at any time.” (*Ibid.* citing 5 California Supreme Court opinions.)

Spar was decided in 1991. Five years later the California Supreme Court reasserted: “[T]he crucial test of the permanency of a trespass or nuisance is whether the trespass or nuisance can be discontinued or abated.” (*Mangini v. Aerojet-General Corp.* (1996) 12 Cal.4th 1087, 1097.) The California Supreme Court also addressed the issue of “what does ‘abatable’ mean?” (*Id.* at 1098.) After a thorough analysis the Court “conclude[d] ‘abatable’ means that the nuisance can be remedied at a reasonable cost by a reasonable means.” (*Id.* at 1103.)

Applicability to SAC

The only real description of what was installed in the Property that constitutes the trespass/nuisance is that New Pipes installed “a HOA common-area water main bypass routed through the interior of” the Property. (¶ 13.) During the process leading up to the installation, Plaintiff sent notice to New Pipes (and the HOA) that he ‘expressly disput[ed] the routing of plumbing through the Unit” and objected to the work. (¶ 14.)

There is no way for the Court to determine at this time via the SAC whether the plumbing “can be remedied at a reasonable cost by a reasonable means.” (*Mangini*, supra, 12 Cal.4th at 1097.) Multiple factors must be considered when trying to determine if a trespass/nuisance is abatable. “These considerations include such things as the feasible means of, and alternatives to, abatement, the time and expense involved, legitimate competing interests, and the benefits and detriments to be gained by abatement or suffered if abatement is denied.” (*Beck Development Co. v. Southern Pacific Transportation Co.* (1996) 44 Cal.App.4th 1160, 1220 quoting *Capogeannis v. Superior Court* (1993) 12 Cal.App.4th 668, 678.)

The need to weigh all the above factors is likely why, generally, the determination of “whether a trespass is continuing or permanent is a question of fact properly submitted to the jury.” (*McCoy v. Gustafson* (2009) 180 Cal.App.4th 56, 92.)

Madani v. Rabinowitz (2020) 45 Cal.App.5th 602, cited by New Pipes in its reply, is instructive. There, a fence was installed between two properties that was found to encroach on plaintiff’s property by approximately two feet. The fence was originally erected prior to 1979, and the original chain link fence was replaced with a wood fence – in the same location – in 2015. (*Id.* at 605-06.) Plaintiff purchased his property in 2000. In 2015, he commissioned a survey of the property which indicated that the fence encroached onto his property. (*Id.* at 606.) He filed suit in March 2016.

Defendant argued that the fence constituted a permanent encroachment as it had occupied the same space since prior to 1979 and was meant to be a permanent structure marking the boundary of the property and was installed with posts cemented into the ground. (*Id.* at 608.) He also argued that the fence did not have a repeated or varying impact on plaintiff’s property. (*Ibid.*)

The court discussed the difference between a permanent and continuing trespass – as outlined above. It noted the California Supreme Court’s holding in *Mangini* that a “trespass or nuisance is continuing if it ‘can be remedied at a reasonable cost by reasonable means.’” (*Id.* at 609.) In *Madani*, there was a bench trial where evidence was presented establishing that the fence could be moved for \$5-6,000. As such, the Court found that the expense to move the fence “is not sufficient ... to regard the fence as a permanent installation.” (*Ibid.*) As it was deemed a continuing trespass, plaintiff could bring an action “at any time to recover the damages which have accrued within the statutory period, although the original trespass occurred before that period.” (*Id.* at 608.)

While the *Madani* case dealt with an evidentiary showing sufficient to show an encroachment is permanent, it underscores the need for evidence related to the cost of removing the offending plumbing to be able to make that determination. That determination cannot be at this stage of the proceedings since a demurrer lies only for defects appearing on the face of the complaint or from matters of which the court must or may take judicial notice. (Code Civ. Proc. § 430.40; see *Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.)

“In order for the bar of the statute of limitations to be raised by demurrer, the defect must **clearly and affirmatively appear on the face of the complaint**; it is not enough that the complaint shows

merely that the action may be barred.” (*E-Fab, Inc.*, supra, 153 Cal.App.4th at 1315-16 emphasis added.) Based on the above, the Court cannot determine whether the trespass/nuisance alleged in the SAC constitutes a permanent or continuing event based on the pleadings. That issue is central to the statute of limitations dispute.

Accordingly, New Pipes’ demurrer to the Trespass and Private Nuisance causes of action is **OVERRULED**.

Statute of Limitations – Negligence

The Court notes that New Pipes demurred to the negligence cause of action based on the statute of limitations but did not demur to the negligent undertaking cause of action on that ground. (See Notice of Demurrer.) The Notice clearly states that the ground for the demur to the negligence claim is “because the cause of action is time barred under California Code of Civil Procedure section 338(c)(1).” The Notice of Demur does not use that wording with relation to the negligent undertaking cause of action. Instead, it only states that Plaintiff “fails to plead facts establishing” the claim. The memorandum also makes clear that New Pipe only asserts statute of limitations as to the negligence cause of action and not the negligent undertaking cause of action. (Compare sections III D and III E.)

The analysis for the negligence cause of action is different from that of the trespass/nuisance claims as it does not rely upon the determination of the plumbing being considered permanent or continuing. As the court in *Cyr v. McGovran* (2012) 206 Cal.App.4th 645 explained:

“To determine the statute of limitations which applies to a cause of action it is necessary to identify the nature of the cause of action, i.e., the ‘gravamen’ of the cause of action. [Citations.]” (*Thomson v. Canyon* (2011) 198 Cal.App.4th 594, 606[.]) Where negligent conduct has caused injury to real property, the gravamen of the cause of action is the injury to the real property. (*McCoy v. Gustafson* (2009) 180 Cal.App.4th 56, 105[.]) In such circumstances, the three-year statute of limitations applies. (*Id.* at 650.)

“Generally speaking, a cause of action accrues at the time when the cause of action is complete with all of its elements.” (*Carrillo v. County of Santa Clara* (2023) 89 Cal.App.5th 227, 234 citing *Fox v. Ethicon Endo-Surgery, Inc.* (2005) 35 Cal.4th 797, 806.)

“The essential elements of a cause of action for negligence are: (1) the defendant’s legal duty of care towards the plaintiff; (2) the defendant’s breach of duty – the negligent act or omission; (3) injury to the plaintiff as a result of the breach – proximate or legal cause; and (4) damage to the plaintiff.” (*Leyva v. Garcia* (2018) 20 Cal.App.5th 1095, 1103.) “In negligence cases, the statute of limitations ordinarily does not commence to run until the damage to the plaintiff occurs.” (*Oakes v. McCarthy Co.* (1968) 267 Cal.App.2d 231, 254.)

As outlined above, New Pipes began installing the plumbing on or about October 25, 2021. Inspections of the work were scheduled for November 30 and December 1, 2021, which resulted in ‘no-show’ failures. On December 8, 2021, an inspection occurred that indicated that “fire-caulking and related wall-construction deficiencies” remained. It is alleged that those deficiencies remained when “New Pipes abandoned the work.” Ultimately, on December 18, 2021, a “Partial Pass/Incomplete” inspection occurred, with a notation that the City should be called for a final inspection when the work was complete.

Plaintiff was damaged on at least October 25, 2021, when New Pipes began its work. This work arguably continued through December 8, 2021, when the SAC alleges that “New Pipes abandoned the

work.” Even if it can be inferred that New Pipes showed up for the December 18 inspection, that is clearly the last date that New Pipes is alleged to have any contact with the Property.

Thus, based on the above, the negligence cause of action accrued by December 18, 2021, at the latest – and more likely on December 8 when it is alleged that New Pipes “abandoned the work.” At that time, all the elements of the negligence claim were present, including the damage to the Property. The SAC makes clear that Plaintiff knew of the damage because he gave written notice of his objection to the work on December 6, 2021.

“Where negligent conduct has caused injury to real property, the gravamen of the cause of action is the injury to the real property. [citation] In such circumstances, the three-year statute of limitations applies.” (Cyr, supra, 206 Cal.App.4th at 650.)

As the negligence cause of action accrued by December 18, 2021, at the latest, Plaintiff was required to file any complaint alleging such a cause of action by December 18, 2024. The initial Complaint was filed on March 13, 2025 – approximately three months after the running of the statute of limitations.

Based on the above, New Pipes’ demurrer to the negligence cause is **SUSTAINED**.

New Claims Asserted Without Leave to Amend – Private Nuisance and Negligent Undertaking

New Pipes argues that the private nuisance and negligent undertaking causes of action were improperly added without leave to amend.

The initial Complaint was filed on March 13, 2023, and did not include the two above causes of action. The HOA Defendant filed a demurrer and motion to strike on March 18, 2025. New Pipes filed an Answer on April 29, 2025.

On August 25, 2025, the Court sustained the HOA Defendant’s demurrer with leave to amend. The FAC was filed on September 15, 2025. The FAC included the two above causes of action directed toward New Pipes.

Given the filing of the FAC, Defendants needed to file new responsive pleadings. (Code Civ. Proc. § 471.5(a).) New Pipes filed a demurrer and motion to strike as to the FAC. It demurred to each of the causes of action on three grounds: (1) failure to set forth facts sufficient to constitute a cause of action; (2) it was ambiguous as to who the real party in interest is as to the Property; and (3) standing. Notably, New Pipes did **not** demur based on the argument that the causes of action were improperly added without seeking leave to amend.

On March 9, 2026, the Court sustained New Pipes’ demurrer “based on the lack of standing.” The Court also noted that it did “not rule on the other grounds raised by New Pipe” at that time. Plaintiff was given leave to amend. The SAC was filed on March 10, 2026. It again contained the above two causes of action.

“A party demurring to a pleading that has been amended after a demurrer to an earlier version of the pleading was sustained **shall not demur to any portion of the amended complaint**, cross-complaint, or answer **on grounds that could have been raised by demurrer to the earlier version of the complaint**, cross-complaint, or answer.” (Code Civ. Proc. § 430.41(b) emphasis added.)

New Pipes did not demur to the FAC on the basis that the private nuisance and negligent undertaking causes of action were improperly added when Plaintiff amended the Complaint. As such, New Pipes has waived the ability to demur to the SAC on that basis. Those two causes of action were in the FAC and as such Plaintiff was within his rights to include them in the SAC when he was given leave to

amend.

Negligent Undertaking

A “negligent undertaking claim of liability to third parties requires evidence that: (1) the actor [New Pipes] undertook, gratuitously or for consideration, to render services to another [HOA]; (2) the services rendered were of a kind the actor should have recognized as necessary for the protection of third persons [Plaintiff]; (3) the actor failed to exercise reasonable care in the performance of its undertaking; (4) the failure to exercise reasonable care resulted in physical harm to the third persons; and (5) either (a) the actor's carelessness increased the risk of such harm, or (b) the undertaking was to perform a duty owed by the other to the third persons, or (c) the harm was suffered because of the reliance of the other or the third persons upon the undertaking.” (*Artiglio v. Corning Inc.* (1998) 18 Cal.4th 604, 614.)

“The negligent undertaking theory permits damages for personal injury or property damage, not economic losses.” (*State Ready Mix, Inc. v. Moffatt & Nichol* (2015) 232 Cal.App.4th 1227, 1235.)

New Pipes argues that the SAC fails to allege facts “establishing the second element” of the cause of action, “namely that New Pipes’ installation of plumbing was ‘necessary for the protection of Plaintiff.’” (Demurrer at 13:23-25.)

The SAC alleges that in 2019 active water intrusion into the Property caused damage including mold growth, foundation damage, and drywall deterioration. (¶ 11A.) While Plaintiff made some repairs to the Property, “they did not and could not address the underlying common-area defects....” (*Ibid.*) In July 2019, Axis Construction performed a water-leak investigation and identified 27 issues. (¶ 11B.) The report attributed moisture intrusion to Plaintiff’s window units. (*Ibid.*)

From October 2021 through January-February 2022, the HOA engage a foundation repair contractor to address foundation cracking issues. (¶ 11E(a).) During the repair work, the HOA’s contractor discovered a leaking HOA common-area water pipe running underneath the foundation of Plaintiff’s unit. (*Ibid.*) It had been leaking for many years. (*Ibid.*) “The leaking subsurface HOA pipe is the originating cause of the continuous chain of harm alleged throughout this complaint....” (¶ 11E(d).)

In October 2021, New Pipes “began plumbing work at the Vintner complex under contract with the HOA.” ¶ 12.) That work consisted of “installation of a HOA common-area water main bypass routed through the interior of Plaintiff’s Unit.” (¶ 13.) In other words, the work to be performed was meant to address the leaking water pipe which had previously been causing physical damage to the Property.

The above is sufficient to allege that the work performed by New Pipes was of a kind that New Pipes should have recognized as necessary for the protection of Plaintiff. As such, New Pipes’ demurrer to the negligent undertaking cause of action is **OVERRULED**.

Leave to Amend

“Leave to amend is in general required to be liberally granted [citation], provided there is no statute of limitations concern.” (*Kolani v. Gluska* (1998) 64 Cal.App.4th 402, 412.) Thus, a court may properly deny a plaintiff leave to amend if the amendment would be futile because the claim is barred by the statute of limitations. (See e.g. *Foxborough v. Van Atta* (1994) 26 Cal.App.4th 217, 231; *Yee v. Mobilehome Park Rental Review Bd.* (1998) 62 Cal.App.4th 1409, 1428-29.)

The Court sustained New Pipes’ demur to the negligence cause of action based on statute of limitations grounds. As outlined above, given the allegations of the SAC, Plaintiff cannot amend his

complaint to get around the statute of limitations issues. As such, amendment would be futile. Leave to amend is **DENIED**.

Conclusion

Based on the above, the Court rules that New Pipes' demurrer is:

- 1) **OVERRULED** as to the trespass and nuisance causes of action.
- 2) **SUSTAINED** as to the negligence cause of action.
- 3) **OVERRULED** as to the negligent undertaking cause of action.

Leave to amend is **DENIED**.

8. 9:00 AM CASE NUMBER: C25-01712

CASE NAME: CWS CONSTRUCTION GROUP, INC. VS. AHS CUSTOM METALS, INC.,

***HEARING ON MOTION IN RE: FOR RELEASE OF FUNDS DEPOSITED WITH THE CLERK OF THE COURT
FILED BY: CWS CONSTRUCTION GROUP, INC.**

TENTATIVE RULING:

On April 7, 2026, Plaintiff and Cross-Defendant CWS Construction Group, Inc. ("CWS") filed a Motion for Release of Funds Deposited with the Clerk of the Court (the "Motion for Release of Funds"). The Motion for Release of Funds was set for hearing on August 17, 2026. The motion is unopposed

Background

As set forth in the Motion for Release of Funds, the sum of \$7,500.00 (the "Deposited Funds") was deposited with the Court by American Contractors Indemnity Company ("ACIC"). See Notice of Deposit filed May 28, 2026. The Deposited Funds represent payment of ACIC's license bond issued to defendant AHS Custom Metals, Inc. ("AHS").

Analysis

The motion is unopposed and no further filings have been made by any party or third party. No other claims have been filed or otherwise presented before the Court with respect to the Deposited Funds.

Disposition

The Court finds and rules as follows:

1. Motion for Release of Funds is GRANTED.
2. A proposed form of order was lodged with the Court which the Court shall execute and enter.

9. 9:00 AM CASE NUMBER: C25-03333

CASE NAME: YESENIA RICO VS. JANE WANG

HEARING ON DEMURRER TO: CROSS-COMPLAINT

FILED BY:

TENTATIVE RULING:

The Demurrer to Cross-Complaint is **OFF CALENDAR**. Cross-Complainant filed a First Amended Cross-Complaint filed on July 30, 2026.

10. 9:00 AM CASE NUMBER: C26-00316
CASE NAME: GARY DARTEZ VS. DOES 1 THROUGH 50, INCLUSIVE
HEARING ON DEMURRER TO: COMPLAINT
FILED BY:

TENTATIVE RULING:

Defendants Walnut Creek Luxury Cars, LLC and Hudson Insurance Company (“Defendants”) filed a Demurrer on April 1, 2026 to the Complaint filed by plaintiff January 29, 2026 (the “Demurrer”). The Demurrer was set for hearing on August 17, 2026.

Background and Analysis

No opposition was filed. However, plaintiff filed a First Amended Complaint on July 28, 2026.

A party may amend its pleading once without leave of the court at any time before the answer, demurrer, or motion to strike is filed, or after a demurrer or motion to strike is filed but before the demurrer or motion to strike is heard if the amended pleading is filed and served no later than the date for filing an opposition to the demurrer or motion to strike. Code Civ. Proc. § 472(a).

When the plaintiff files an amended complaint in response to a defendant’s demurrer before the hearing on the demurrer, that hearing should be taken off calendar because the amended complaint supersedes the complaint to which the demurrer was directed. *People ex rel. Strathmann v. Acacia Research Corp.* (2012) 210 Cal.App.4th 487, 506; see CJER, *California Judges Benchbook: Civil Proceedings—Before Trial* (2025) (“CJER Civ. Pro.—Before Trial”), § 12.11.

Accordingly, the Court orders the Demurrer off-calendar as moot in light of the amended complaint.

Disposition

The Court finds and orders as follows:

1. The Demurrer is ordered OFF-CALENDAR as moot.
2. The Court shall issue the order after hearing.

11. 9:00 AM CASE NUMBER: C26-01077
CASE NAME: PRAVEEN GUPTA VS. DOES 1 THROUGH 20, INCLUSIVE
HEARING IN RE: APPLICATION FOR ORDER TO SHOW CAUSE RE PRELIMINARY INJUNCTION
FILED BY: GUPTA, PRAVEEN

TENTATIVE RULING:

This matter is **CONTINUED**, *sua sponte* by the Court, to September 28, 2026, 9:00 am, in Department 34.

12. 9:00 AM CASE NUMBER: C26-01077
CASE NAME: PRAVEEN GUPTA VS. DOES 1 THROUGH 20, INCLUSIVE
HEARING ON DEMURRER TO:
FILED BY:
TENTATIVE RULING:

This matter is **CONTINUED**, *sua sponte* by the Court, to September 28, 2026, 9:00 am, in Department 34.

13. 9:00 AM CASE NUMBER: C26-01077
CASE NAME: PRAVEEN GUPTA VS. DOES 1 THROUGH 20, INCLUSIVE
*HEARING ON MOTION IN RE: STRIKE PORTIONS OF COMPLAINT
FILED BY:
TENTATIVE RULING:

This matter is **CONTINUED**, *sua sponte* by the Court, to September 28, 2026, 9:00 am, in Department 34.

14. 9:00 AM CASE NUMBER: MSC22-00134
CASE NAME: RODRIGUEZ VS. STRONG
HEARING ON DEMURRER TO: RE 1ST AMENDED CROSS COMPLAINT OF STRONG
FILED BY: MENDEZ, ALBERTO
TENTATIVE RULING:

Before the Court is a demurrer by cross-defendant Alberto Mendez to the first amended cross-complaint filed by cross-complainant Michelle Strong. The hearing on the demurrer is **CONTINUED to 9:00 a.m. on September 21, 2026** for supplemental briefing, as set forth below.

Background

This action involves disputes over the operation of a restaurant and brewery business in Martinez, now closed. In the main action in the currently operative first amended complaint, Plaintiff Juan Reynaldo Rodriguez has sued Michelle Strong, LaSalle Strong, and Rocksteady Brewery Co. On April 29, 2022, Michelle Strong and LaSalle Strong filed a cross-complaint against Juan Rodriguez. On December 23, 2025, Michelle Strong filed a first amended cross-complaint ("FACC") against Juan Rodriguez, R&A Restaurant Group, LLC ("R&A LLC"), and Alberto Mendez, erroneously named as Albert Mendez that is the subject of the current demurrer. The FACC alleges 12 causes of action. Albert Mendez has filed a general demurrer to certain of those causes of action.

Procedural Defects in the Notice of Demurrer and Opportunity for Supplemental Opposition to the Demurrer to the Eighth Cause of Action

The notice of demurrer states Mendez is making general demurrers to three causes of action: conversion (4th C/A), declaratory relief (10th C/A), and injunctive relief (12th C/A). (Not. of Dem. p. 2, ll. 10-15.) The "Demurrer" on the ensuing page, however, lists general demurrers to four causes of action, the three listed above plus a general demurrer to the eighth cause of action for intentional interference with prospective economic advantage. The memorandum in support of the demurrer

similarly addresses in the introduction only the fourth, tenth, and twelfth causes of action as subject to the demurrer. (MPA p. 2, ll. 8-10 and 13-15.) Yet, later in the brief, Mendez challenges the sufficiency of the allegations of the eighth cause of action. (MPA pp. 4-5.)

The manner of notice and presentation of the demurrers and supporting argument raise questions as to whether cross-complainant was given adequate notice that Mendez was challenging the eighth cause of action. Her opposition addresses specifically the demurrers to the fourth, tenth, and twelfth causes of action but not the eighth cause of action. Given the notice deficiencies stated above, the Court will allow Strong an opportunity to file a supplemental opposition addressing Mendez's general demurrer to the eighth cause of action. Mendez may file, but is not required to file, a supplemental reply addressing arguments made by Strong in her supplemental opposition regarding the eighth cause of action.

Issue of Standing Raised *Sua Sponte* by the Court on Which The Court Requests Supplemental Briefing

Mendez has filed general demurrers to the four causes of action cited above, asserting that cross-complainant Strong has failed to allege facts sufficient to state each of those causes of action, including the fourth cause of action for conversion. The Court's review of the FACC leads the Court to ask for supplemental briefing on the issue of whether, as pled, cross-complainant Strong has standing to sue for the injuries alleged in the fourth cause of action.

A. Standing

Standing to bring a claim is an essential element of a cause of action. (*Schrage v. Schrage* (2021) 69 Cal.App.5th 126, 150-151; *Martin v. Bridgeport Community Assn., Inc.* (2009) 173 Cal.App.4th 1024, 1031 ["Standing is the threshold element required to state a cause of action and, thus, lack of standing may be raised by demurrer. [Citations omitted.]".]) Whether a plaintiff has standing to bring the claim is a question of law. (*Id.* [citing *A.J. Fistes Corp. v. GDL Best Contractors, Inc.* (2019) 38 Cal.App.5th 677, 687].) "A plaintiff's lack of standing is treated as a 'jurisdictional' defect and is not waived by a defendant's failure to raise it by demurrer or answer. '[C]ontentions based on a lack of standing involve jurisdictional challenges and may be raised at any time in the proceeding.' [Citations omitted.]" (*NNN Capital Fund I, LLC v. Mikles* (2026) 119 Cal.App.5th 1200, 1209.)

Lack of standing to sue addresses the party's right to relief as a real party in interest and is a ground for sustaining a general demurrer to a complaint. (*Parker v. Bowron* (1953) 40 Cal.2d 344, 351 ["Where the complaint states a cause of action in someone, but not in the plaintiff, a general demurrer for failure to state a cause of action will be sustained. [Citation omitted.]"]; *Friendly Village Community Assn., Inc. v. Silva & Hill Constr. Co.* (1973) 31 Cal.App.3d 220, 224 ["if the complaint shows that he is not a real party in interest and therefore lacks "standing" to sue, a 'general' demurrer will be sustained. [Citations omitted.]"].) " 'Every action must be prosecuted in the name of the real party in interest, except as otherwise provided by statute.' (Code Civ. Proc., § 367.) (6) 'The real party in interest is generally the person who has the right to sue under the substantive law. [Citation.] 'A party who is not the real party in interest lacks standing to sue because the claim belongs to someone else.' " [Citations omitted.]" (*NNN Capital Fund I, LLC, supra*, 119 Cal.App.5th at 1210.)

B. Individual Versus Derivative Actions for Injury to Corporation

"Claims for injury or damage to a corporation or its property belong to the corporation, not its stockholders, who have no standing to sue for such wrongs. {Citation omitted.}" (*NNN Capital Fund I, LLC, supra*, 119 Cal. App. 5th at 1212 [quoting *Jones v. H.F. Ahmanson & Co.* (1969) 1 Cal.3d 93, 107].) When the gravamen of the claim alleged is one of injury to the corporation, the corporation has to maintain the suit for remedial action, or a shareholder may bring a derivative action on behalf of the corporation if appropriate. (*NNN Capital Fund I, LLC, supra*, 119 Cal.App.5th at 1212; *Nelson v. Anderson* (1999) 72 Cal. App. 4th 111, 127.) These standing rules, and the requirement of pursuing a shareholder derivative action in order for an individual shareholder to pursue claims for injury to the corporation applies even when the corporation has only two shareholders. (*Nelson, supra*, 72 Cal.App.4th at 127 ["Whether there is one minority shareholder or many, an action is individual only if the stock of the individual plaintiff or plaintiffs is the only stock affected adversely. [Citation omitted.].] Here, the corporation lost earnings, profits, and opportunities, rendering all the shares valueless. When the injury is to the 'whole body of stock,' the action must be derivative. [Citation omitted.].") The Court notes that in January 2025, plaintiff in the main action in this case filed a first amended complaint adding derivative claims related to Rocksteady Brewing Company, naming Rocksteady as a nominal defendant on those claims.

Cross-complainant Strong alleges, in summary, that she was the co-owner, CEO and manager of Rocksteady Brewing Company, a California corporation. (FACC ¶ 1.) She alleges in the fourth cause of action that defendant Mendez and others converted the assets of Rocksteady Brewing Company, because he allegedly "wrongfully took possession of Rocksteady Brewing Company's assets, equipment, goodwill, and use of its liquor license without Strong's consent." (FACC PDF p. 4 [4th C/A, emphasis added].)

The Court requests that cross-complainant include in her supplemental opposition to the demurrer briefing addressing whether she has standing to pursue her claim for conversion as alleged in the fourth cause of action of the FACC. Mendez may address any arguments by Strong in her supplemental opposition on the fourth cause of action, but Mendez is not required to file any supplemental reply.

Supplemental Briefing Dates

Strong's supplemental opposition addressing the two issues above shall be filed **by August 31, 2026**. Any supplemental reply Mendez elects to file shall be filed **by September 8, 2026**. The hearing is continued **to September 21, 2026**.

15. 9:00 AM CASE NUMBER: N25-1849
CASE NAME: GARY DARTEZ VS. CITY OF ANTIOCH RENT PROGRAM
HEARING ON DEMURRER TO: RE FIRST AMENDED PETITION
FILED BY: REDWOOD PROPERTY INVESTORS III, LLC
TENTATIVE RULING:

Redwood Property Investors III, LLC ("Redwood") is named as the "Real Party in Interest" in the operative Verified First Amended Petition filed on February 25, 2026 (the "Amended Petition") by petitioners Gary Dartez and Tamisha Latimor ("Petitioners"). Redwood filed a Demurrer on April 1, 2026 to the Amended

Petition (the “Demurrer”). Redwood also filed a Motion to Strike the Amended Petition on April 1, 2026 to (the “Motion to Strike”). The Demurrer and the Motion to Strike were initially set for hearing on August 10, 2026.

By a later scheduling order, the Demurrer and the Motion to Strike were reset for hearing on August 17, 2026 and a briefing schedule was set. See Order entered June 11, 2026. A July 23, 2026 deadline was set for any opposition to the Demurrer and the Motion to Strike. *Id.*

Background and Analysis

No opposition was filed. Redwood filed a Notice of Non-Opposition on July 29, 2026. The Requests for Judicial Notice filed April 1, 2026 is GRANTED.

Both motions are fundamentally based on the same core defect—that Redwood is not a proper party to this writ proceeding and no proper cause of action has or could be pled against Redwood because it is not an administrative or public agency.

Although there are references to Redwood throughout the Amended Petition, none of the causes of action are pled against it. See Amended Petition, ¶161 *et seq.* Indeed, the pleading makes clear that Plaintiffs do not allege causes of action as against Redwood in this action. Amended Petition, ¶14 (“Petitioners do not seek adjudication in this writ proceeding of separate tort damages, statutory damages, civil-rights damages, punitive damages, accounting relief, conversion relief, or other non-writ merits claims against Redwood Property Investors III, LLC...”).

No basis has been shown by Plaintiffs to maintain the Amended Petition as against Redwood.

Disposition

The Court finds and orders as follows:

1. The Demurrer and the Motion to Strike are GRANTED. Leave to amend is DENIED.
2. The Court shall issue the order after hearing.

16. 9:00 AM CASE NUMBER: N25-1849
CASE NAME: GARY DARTEZ VS. CITY OF ANTIOCH RENT PROGRAM
***HEARING ON MOTION IN RE: STRIKE PETITIONERS' FIRST AMENDED PETITION**
FILED BY: REDWOOD PROPERTY INVESTORS III, LLC
TENTATIVE RULING:

See LINE 15 above.

17. 9:00 AM CASE NUMBER: N26-0602
CASE NAME: PETITION OF:RAHBAN ALGAZZALI
HEARING IN RE: PETITION TO COMPEL ARBITRATION
FILED BY:
TENTATIVE RULING:

The Petition of Abdo AlGazzali and Ali Abdulraman (“Petitioners”) to compel arbitration of claims against Mihne, Inc. (“Respondent”) is **CONTINUED** by the Court to October 5, 2026 at 9:00 a.m. in Department 34.

On August 11, 2026, Petitioners filed the Declaration of their counsel, James Claytor, along with Objections to Respondent's Opposition to the Petition to Compel. Petitioners state that they first became aware of Respondent's opposition on August 7, 2026, when mediation provider ADR Services provided a link to Respondent's mediation brief, which attached unfiled copies of the opposition.

Petitioners ask the Court to disregard Respondent's opposition. The Court declines to do so and finds that the better course is to continue the hearing to allow Petitioners sufficient time file a substantive reply. Petitioners may file their reply on or before September 16, 2026.

If the matter settles in mediation or the parties stipulate to submit their dispute to arbitration, Petitioners shall promptly take the Petition off calendar.

Discovery Law & Motion

18. 9:01 AM CASE NUMBER: C24-01850

CASE NAME: DANIEL KNUTSON VS. STERICYCLE, INC.

***HEARING ON MOTION FOR DISCOVERY TO COMPEL DEFENDANT'S SUPPLEMENTAL RESPONSES TO REQUESTS FOR PRODUCTION OF DOCUMENTS, SET THREE**

FILED BY: KNUTSON, DANIEL

TENTATIVE RULING:

Plaintiff Daniel Knutson ("Plaintiff") filed a motion to compel supplemental discovery responses on June 23, 2026 to compel further responses to discovery requests (the "Motion to Compel Further Responses") propounded upon defendant Stericycle, Inc. ("Defendant"). The Motion to Compel Further Responses was set for hearing on December 14, 2026. The hearing date was later advanced to August 17, 2026. See Order entered July 22, 2026.

Background

The discovery requests at issue in the Motion to Compel Further Responses (collectively, the "Discovery Requests") are the following:

1. Plaintiff's Requests for Production of Documents, Set Three (the "**RPDs**"). Specifically, RPDs, Nos. 95-96 and 98-99.

A Separate Statement in support of the motion was filed on June 23, 2026.

Opposition papers were filed on August 4, 2026, including an opposition Separate Statement.

A reply was filed August 10, 2026.

Analysis

Civil discovery in California is governed by the Civil Discovery Act. See Code Civ. Proc. §§ 2016.010–2036.050. The Civil Discovery Act provides litigants with the right to broad discovery. *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390, 402. In general, any party may obtain discovery regarding any matter, not privileged, that is relevant to the subject matter involved in the pending action or to the determination of any motion made in that action, if the matter either is itself admissible in evidence or appears reasonably calculated to lead to the discovery of

admissible evidence. Code Civ. Proc. § 2017.010; see *Sinaiko Healthcare Consulting, Inc.*, *supra*, 148 Cal.App.4th at 402.

On the other hand, the Court is empowered to limit the scope of discovery where the burden, expense, or intrusiveness of that discovery clearly outweighs the likelihood that the information sought will lead to the discovery of admissible evidence. Code Civ. Proc. § 2017.020(a). Moreover, the moving party and proponent of the discovery on a motion to compel further responses to a request for production of documents must set forth specific facts showing good cause justifying the discovery sought by the demand. Code Civ. Proc. § 2031.310(b)(1).

When a motion to compel has been filed, the burden is on responding party to justify any objections made. *Fairmont Ins. Co. v. Superior Court* (2000) 22 Cal.4th 245, 255.

Having considered the moving papers, including the Separate Statement, the opposition, the reply and any further pleadings submitted, the Court makes the following findings and orders as to the Discovery Requests and responses at issue:

RPDs

RPD No. 95.

This RPD seeks production of **“All DOCUMENTS and ESI regarding Elisha Glick’s length of service with YOU.”** (emphasis added).

The response recites a litany of boilerplate objections and then contains a compliance statement to the effect that the responding party will comply and produce all responsive documents in its possession, custody, and/or control:

Responding Party objects to this request on the grounds that it is vague and ambiguous. Responding Party further objects to this request as overbroad, unduly burdensome, and oppressive as to time and scope. Responding Party further objects to this request as it seeks the production of electronically stored information on the grounds that such electronically stored information, if any at all, may not be reasonably accessible and recovery of this data would be an undue burden and expense to Responding Party and is not proportional to the needs of the case. Responding Party further objects to this request as disclosure of the information sought would violate the privacy rights of third parties and/or Responding Party’s past and/or present employees under the Constitution of the United States and the State of California and under statutory or common law privacy principles. Without waiving the foregoing:

Responding Party will comply with this request and produce all responsive documents in its possession, custody, and/or control.

The propounding party contends that the responding party failed to identify produced responsive documents by the specific demand to which the documents respond as required by Code of Civil Procedure section 2031.280(a).

Section 2031.280(a) provides:

Any documents or category of documents produced in response to a demand for inspection, copying, testing, or sampling shall be identified with the specific request number to which the documents respond.

See Code Civ. Proc. § 2031.280(a).

The responding party contends that it complied with Section 2031.280 by providing the requesting party with “a document matrix identifying the Bates number ranges responsive to each request.” See Declaration of Erin Collins Dulle filed August 4, 2026 (“Dulle Decl.”) ¶14; see Declaration of Kristen Tojo filed June 23, 2026 (“Tojo Decl.”) **Exhibit 4**.

The requesting party argues that a “free-standing, extra-response matrix that is unverified and not served as part of the written response does not satisfy Section 2031.280(a).”

The Court is not aware of any authority to support this proposition and the requesting party has cited none.

Section 2031.280 speaks in terms of the manner in which “documents produced in response” are to identified. It says nothing about the content of the verified written compliance statement. See Code Civ. Proc. § 2031.280(a).

Section 2031.210(c), cited by the requesting party, discusses the requirements for the written response. It contains no reference to Section 2031.280.

The reference to *Melendrez v. Superior Court* for the proposition that “[u]nverified substantive discovery responses are treated as no responses at all” is unavailing. Nothing in that case dealt with Section 2031.280. See *Melendrez v. Superior Court* (2013) 215 Cal.App.4th 1343, 1348.

Indeed, the authority that the Court is aware of bearing on this issue is contrary to the moving party’s position. See *Pollock v. Superior Court* (2023) 93 Cal.App.5th 1348, 1351 (“**Based on the plain language of section 2031.210, a statement of compliance need not identify the specific request to which each document will pertain.**”) (emphasis added). The Court observed that nothing in Section 2031.280 requires this. *Id.* at 1358.

The Court also rejects the contention that the response is not code compliant as written. The Court finds that the compliance statement here indicates the party “will comply” and does not purport to limit that compliance statement in any material way. It states, affirmatively, that all documents in the responding party’s possession, custody, or control will be produced. See Code Civ. Proc. § 2031.210(a); see *Pollock v. Superior Court, supra*, 93 Cal.App.5th at 1357 (discussing nature of code compliant response to document demand); see also Weil & Brown, *et al.*, *Cal. Prac. Guide: Civ. Pro. Before Trial* (The Rutter Group 2025), § 8:1469.

While it is arguable whether the inclusion of boilerplate or general objections is proper, the Court declines to compel any further response in light of the unequivocal compliance statement.

The request to compel a further response to this document production request is **DENIED**.

RPD No. 96.

This RPD seeks production of “**All DOCUMENTS and ESI regarding Elisha Glick’s Secure Information Destruction (“SID”) Knowledge with YOU.**” (emphasis added).

No substantive response made, only a litany of objections.

The Court first considers the objection that the category of documents sought is vague and ambiguous.

Documents “regarding” a person’s “Information Destruction (“SID”) Knowledge with YOU” is awkward phrasing. However, the call of the request is not so ambiguous so as to render the request unintelligible and/or preclude an intelligent reply. See CJER, *California Judges Benchbook: Civil Proceedings—Discovery* (2025) (“CJER Civ. Pro.—Discovery”), § 5.5.

The Court finds that the request is sufficiently definite to allow an intelligent reply.

In particular, it is amenable to the interpretation that the request is seeking any documents and ESI related to this person knowledge of a given topic—here, Secure Information Destruction (“SID”)—while employed “with YOU.”

The responding party also objects that the request is overbroad.

Given that the request can be read to seek all documents and ESI related to the person’s knowledge of the referenced topic, Secure Information Destruction (“SID”), the question becomes whether such a broad range of documents and ESI are properly discoverable. The Court concludes they are not.

The request seeks production of an extraordinarily wide range of documents that would not have any tendency in reason to prove or disprove any disputed fact that is of consequence to the determination of the particular claims at issue or lead to the discovery of any such evidence.

As addressed in the opposition, the “SID Knowledge by Years” factor at issue in the evaluation refers to years of experience within Stericycle’s Secure Information Destruction business unit. No credible showing is made that somehow, the person’s entire “knowledge” of “Secure Information Destruction (“SID”)”—whatever that might be read to mean—and every document “regarding” that is somehow relevant to this litigation or likely to lead to discovery of relevant evidence.

In light of the foregoing, the Court need not consider the other stated objections.

The Court finds that the moving party has failed to set forth specific facts showing good cause justifying the discovery sought by the demand. Accordingly, the request to compel a further response to this document production request is **DENIED**.

RPD No. 98.

This RPD seeks production of **“All DOCUMENTS and ESI regarding Elisha Glick’s discipline with YOU.”** (emphasis added).

The request to compel a further response to this document production request is **DENIED** for the same reasons discussed above in connection with RPD No. 95.

RPD No. 99.

This RPD seeks production of **“All DOCUMENTS and ESI relating to the percentage weights assigned to each category used in the decision matrix.”** (emphasis added).

The responding party’s response states:

Responding Party objects to this request on the grounds that it is vague and ambiguous.
Responding Party further objects to this request as overbroad. Without waiving the foregoing:
Responding Party previously produced all documents in its possession, custody, and/or control that are responsive to this request.

The Court is not aware of any authority to permitting a party to respond with a statement that it “previously produced” responsive documents and the responding party has cited none. See Code Civ. Proc. § 2031.210(a); see *Pollock v. Superior Court*, *supra*, 93 Cal.App.5th at 1357 (discussing nature of code compliant response to document demand); see also Weil & Brown, *et al.*, *Cal. Prac. Guide: Civ. Pro. Before Trial* (The Rutter Group 2025), § 8:1469.

The Court finds that the compliance statement is not code-compliant. Accordingly, the motion is **GRANTED** as to this request and a further response shall be made as ordered below.

The stated objections are **OVERRULED**. The responding party is ordered to make a further response to this document request without the overruled objections and to produce any further responsive documents. If any responsive documents are redacted or withheld pursuant to any privilege objection(s), the responding party shall provide a detailed privilege log. The privilege log need not designate documents generated by the responding party's attorneys which may be withheld without further disclosure, subject to any further court order.

The requesting party's contention as to non-compliance with Section 2031.280 is rejected for the same reasons discussed above in connection with RPD No. 95.

Sanctions

The Court has considered and denies the imposition of sanctions. The Court concludes that sanctions are not appropriate or justified. See Code Civ. Proc. § 2031.300(c) ("...the court shall impose a monetary sanction ... against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel a response to a demand for inspection ... unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.").

Disposition

The Court further finds and orders as follows:

1. The Motion to Compel Further Responses is **GRANTED IN PART** and **DENIED IN PART**, as set forth further above.
2. Defendant shall serve a verified further amended response (along with production of all responsive documents) to **RPD No. 99 on or before Friday, August 28, 2026**, in accordance with the further orders and directives set forth above.
3. Any and all sanctions requests are **DENIED**. However, the Court reserves jurisdiction regarding the consideration and imposition of any and all further sanctions as the Court may deem just and necessary pending compliance with this order.
4. The Court shall issue the order after hearing.

19. 9:01 AM CASE NUMBER: C25-00272

CASE NAME: KATIE MOLLES VS. WAYNE ACKERMAN

***HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES TO FORM INTEROGS, SET 1
FILED BY: VOYAGER GLOBAL MOBILITY LLC**

TENTATIVE RULING:

CONTINUED to November 2, 2026, 9:00 am, in Department 34 pursuant to the Court's Order entered August 7, 2026.

20. 9:01 AM CASE NUMBER: C25-00272

CASE NAME: KATIE MOLLES VS. WAYNE ACKERMAN

***HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES TO FORM INTEROGS-
GENERAL, SET 1**

FILED BY: VOYAGER GLOBAL MOBILITY LLC

TENTATIVE RULING:

CONTINUED to November 2, 2026, 9:00 am, in Department 34 pursuant to the Court's Order entered August 7, 2026.

21. 9:01 AM CASE NUMBER: C25-00272

CASE NAME: KATIE MOLLES VS. WAYNE ACKERMAN

***HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES TO REQUESTS FOR PROD
OF DOCS, SET 1**

FILED BY: VOYAGER GLOBAL MOBILITY LLC

TENTATIVE RULING:

CONTINUED to November 2, 2026, 9:00 am, in Department 34 pursuant to the Court's Order entered August 7, 2026.